

Baiju A.A vs State Tax Officer on 6 December, 2019

Equivalent citations: AIRONLINE 2019 KER 825, (2020) 1 KER LT 233

Author: A.K.Jayasankaran Nambiar

Bench: A.K.Jayasankaran Nambiar

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.9963 OF 2019(U)

PETITIONER:

BAIJU A.A.
AGED 48 YEARS
PROPRIETOR, ARC TECH, VII/633F, WAZIM MANZIL,
AIRPORT SEAPORT ROAD, FRIENDS VALLEY, THRIKKAKARA,
KOCHI-682021.

BY ADVS.SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER
WORKS CONTRACT, STATE GOODS & SERVICES TAX DEPARTMENT,
CLAS TOWERS, OLD RAILWAY STATION ROAD, ERNAKULAM,
KOCHI-682018.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, PIN-695001.

R1-2 BY SRI. C.E.UNNIKRISHNAN, SPL.GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).36953/2018(T) AND
CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE
FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.36953 OF 2018(T)

PETITIONER:

M/S. CALICUT LAND MARK BUILDERS AND DEVELOPERS INDIA (P)
LIMITED
MINI BYE PASS ROAD
PUTHIYARA (PO), KOZHIKODE
REPRESENTED BY ITS MANAGING DIRECTOR, ARUN KUMAR.K.

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SHRI.AKHIL SURESH

RESPONDENTS:

- 1 STATE TAX OFFICER
WORKS CONTRACT
STATE GOODS AND SERVICE TAX DEPARTMENT,
KOZHIKODE-673 006.
- 2 THE COMMISSIONER
COMMERCIAL TAXES, THIRUVANANTHAPURAM - 695 001.
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.1125 OF 2019(M)

PETITIONER:

SRI.BADARUDDEEN.P.C. ,
AGED 40 YEARS
PROPRIETOR, M/S.BADAR TYRES, KODUVALLY, KOZHIKODE.

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 STATE TAX OFFICER,
4TH CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
KOZHIKODE - 673 004.
- 2 THE COMMISSIONER
COMMERCIAL TAXES, THIRUVANANTHAPURAM - 695 001.
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.4416 OF 2019(B)

PETITIONER:

CEE VEE FOOTWEAR (INDIA) PVT. LTD,
N.H.ROAD, CHUNGAM, FEROKE, CALICUT 673 631,
BY V.SHAREEF, MG DIRECTOR.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJJIT NAGENDRAN

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER OF STATE TAX,
SPL. CIRCLE-II,
STATE GST DEPT, KOZHIKODE-673 006
- 2 GOVERNMENT OF KERALA,

REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM- 695 001

3 THE COMMISSIONER OF STATE TAX,
STATE GST DEPT, THIRUVANANTHAPURAM-695 001.

R1-R3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.4417 OF 2019(B)

PETITIONER:

MS.PLAST "O" PLAST,
V.K.KRISHNA MENON ROAD, KALLAI, KOZHIKODE 673 003,
REP BY P.B.I.MOHAMED ASHRAF, PARTNER.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

1 ASSISTANT COMMISSIONER OF STATE TAX,
SPL. CIRCLE-1, STATE GST DEPT,
KOZHIKODE 673 006

2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM 695 001.

3 THE COMMISSIONER OF STATE TAX,
STATE GST DEPT, THIRUVANANTHAPURAM 695 001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.4426 OF 2019(C)

PETITIONER:

P.SAHADEVAN SONS,
BAKERY AND BUTLERS SHOP, THONDAYAD, BYPASS,
NELLIKODE P.O.CALICUT 673 016
REP. BY PROPRIETOR - SUJITH KUMAR PENOTHILA

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER-1
SPL.CIRCLE-1, STATE GST DEPT, KOZHIKODE-673 006
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695 001.
- 3 THE COMMISSIONER OF COMMERCIAL TAXES,
STATE GST DEPT, THIRUVANANTHAPURAM- 695 001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.6766 OF 2019(U)

PETITIONER:

M/S.SHEEN GOLDEN JEWELS (INDIA) PVT. LTD.
XXI/1016(2), COLLEGE ROAD, PATHANAMTHITTA
REPRESENTED BY ITS DIRECTOR, MR. M.P. AHAMMED BASHEER

BY ADVS.N.VENKATARAMAN (SR)
SMT.SHOBA ANNAMMA EAPEN

SHRI .AKHIL SURESH
SRI .K.P.ABDUL AZEES

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
STATE GOODS AND SERVICE TAX DEPARTMENT,
PATHANAMTHITTA - 689 645
- 2 THE COMMISSIONER
COMMERCIAL TAXES, THIRUVANANTHAPURAM - 695 001
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), TAXES DEPARTMENT,
SECRETARIAT, THIRUVANANTHAPURAM - 695 001

R1 TO R3 BY SRI.C.E.UNNIKRISHNAN, SPL.GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.7323 OF 2019(M)

PETITIONER:

M/S. ELAVALLY SERVICE CO-OPERATIVE BANK LTD.
VAKA.P.O., MATTOM, THRISSUR DISTRICT,
REPRESENTED BY ITS SECRETARY IN CHARGE BINY.A.M.

BY ADVS.SMT.S.K.DEVI
SRI.SANTHOSH P.ABRAHAM

RESPONDENTS:

- 1 THE STATE TAX OFFICER
KERALA STATE GOODS AND SERVICE TAX DEPARTMENT,
CHAVAKKAD 680 506.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS & SERVICE TAX DEPARTMENT,
POOTHOLE, THRISSUR 680 004.
- 3 THE ASST. COMMISSIONER OF STATE TAX,
KERALA STATE GOODS & SERVICE TAX DEPARTMENT,

4 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY,
SECRETARIAT, THIRUVANANTHAPURAM 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.7648 OF 2019(E)

PETITIONER:

M/S.MINAR CASTINGS (P) LTD.
NIDA, KANJIKODE, PALAKKAD,
REPRESENTED BY ITS DIRECTOR, A. MOHAMMED HANEEFA

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
SPECIAL CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
PALAKKAD - 678 014.
- 2 THE COMMISSIONER
COMMERCIAL TAXES, THIRUVANANTHAPURAM - 695 001.
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), TAXES DEPARTMENT,
SECRETARIAT, THIRUVANANTHAPURAM - 695 001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES,
THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.8356 OF 2019(T)

PETITIONER:

SIGNATURE AUTOMOBILES INDIA PVT. LTD
KANNOTHUMACHAL, KANNUR 670 001,
BY SHAAD NAZIRUDDIN, DIRECTOR

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

1 THE ASSISTANT COMMISSIONER OF STATE TAX
SPECIAL CIRCLE, STATE GST DEPARTMENT,
KANNUR - 670 002

2 GOVERNMENT OF KERALA
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM - 695 001

3 THE COMMISSIONER OF STATE TAX
STATE GST DEPARTMENT,
THIRUVANANTHAPURAM - 695 001

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL.GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

WP(C).No.8594 OF 2019(Y)

PETITIONER:

M/S.CORDIAL COMPANY
NARAYANA BHAVAN, TC 9/2196, KURUPS LANE,
SASTHAMANGALAM, THIRUVANANTHAPURAM, PALAKKAD,

REPRESENTED BY ITS PARTNER - N.AYYAPPAN UNNITHAN

BY ADVS.SRI.K.I.MAYANKUTTY MATHER
SRI.R.JAIKRISHNA
SRI.SANTHAN V.NAIR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX,
STATE GOODS AND SERVICE TAX, WORKS CONTRACT,
THIRUVANANTHAPURAM-695 001
- 2 STATE OF KERALA,
REPRESENTED BY CHIEF SECRETARY TO GOVERNMENT,
SECRETARIAT, THIRUVANANTHAPURAM-695 001
- 3 INSPECTING ASSISTANT COMMISSIONER,
DEPARTMENT OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695 001

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.8746 OF 2019(P)

PETITIONER:

M/S.HAPPY TIMES
GOLDEN PLAZA BUILDING, MAVOOR ROAD, KOZHIKODE,
REPRESENTED BY MANAGING PARTNER, MR.PAKRAN.

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE STATE TAX OFFICER,
THIRD CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
KOZHIKODE-673006.
- 2 THE COMMISSIONER,

COMMERCIAL TAXES, THIRUVANANTHAPURAM-695001.

- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY (TAXES), TAXES DEPARTMENT,
SECRETARIAT, THIRUVANANTHAPURAM-695001.

R1 - R3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.8779 OF 2019(V)

PETITIONER:

M/S.TALASH PLASTOPACKS
SWARAJ PLYWOOD ROAD, PAPPINISSERI, KANNUR
REPRESENTED BY ITS MANAGING PARTNER, LABEEB P.T.P

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE STATE TAX OFFICER
II CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
KANNUR 670003.
- 2 THE COMMISSIONER
COMMERCIAL TAXES, THIRUVANANTHAPURAM - 695 001
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES),
TAXES DEPARTMENT, SECRETARIAT,
THIRUVANANTHAPURAM - 695 001

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.9700 OF 2019(J)

PETITIONER:

DEERA DISTRIBUTORS,
CUSTOM ROAD, KOZHIKODE-673032,
REPRESENTED BY DILIP C.PATEL, MANAGING PARTNER.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER,
SPL. CIRCLE-I, SGST DEPARTMENT,
KOZHIKODE-673006.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695001.
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10208 OF 2019(A)

PETITIONER:

SUNIL KUMAR.S
AGED 53 YEARS
PROPRIETOR YESKAY CONSTRUCTIONS, SREE MURUGA BUILDING,
KALOOR, KADAVANTHRA ROAD, KALOOR, KOCHI-682017.

BY ADVS.SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER (WC)
AND ORS, O/O THE DEPUTY COMMISSIONER,
STATE GOODS & SERVICES TAX DEPARTMENT,
THEVARA, ERNAKULAM, KOCHI-682015
- 2 STATE OF KERALA
REPRESENTED BY SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, PIN-695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10320 OF 2019(L)

PETITIONER:

M/S.BRIGHT MARKETTERS,
LOTUS, COIMBATORE ROAD, KUNNATHURMEDU,
PALAKKAD, REPRESENTED BY ITS PARTNER,
UNNIKRISHNAN C.R.

BY ADVS.SRI.HARISANKAR V. MENON
SMT.MEERA V.MENON

RESPONDENTS:

- 1 THE COMMERCIAL TAX OFFICER,
II CIRCLE, COMMERCIAL TAXES DEPARTMENT,
PALAKKAD 678 001
- 2 THE COMMISSIONER OF COMMERCIAL TAXES,
TAX TOWERS, KILLIPPALAM, KARAMANA,
THIRUVANANTHAPURAM 695 002

3 INSPECTING ASST. COMMISSIONER,
DEPARTMENT OF COMMERCIAL TAXES, PALAKKAD 678 001

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10337 OF 2019(N)

PETITIONER:

CRESCENT CONSTRUCTIONS,
MOOLEPADOM ROAD, KAKKANAD WEST P.O., KOCHI- 682030
(REPRESENTED BY SRI.P.P.KUNJU MUHAMMED, MANAGING
PARTNER).

BY ADVS.SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

1 STATE TAX OFFICER,
WORKS CONTRACT, STATE GOODS & SERVICES TAX DEPARTMENT,
TAX COMPLEX, THEVARA, ERNAKULAM, KOCHI- 682015.

2 INSPECTING ASSISTANT COMMISSIONER,
STATE GOODS & SERVICES TAX DEPARTMENT,
ERNAKULAM AT KAKKANAD, KOCHI- 682030.

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10343 OF 2019(P)

PETITIONER:

M/S.YENKEY ROLLER FLOUR MILLS,
CHEROOTTY ROAD, KOZHIKODE, REPRESENTED BY ITS MANAGING
PARTNER, N.K.MOHAMMED ALI

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SHRI.AKHIL SURESH
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER 2,
SPECIAL CIRCLE I, STATE GOODS AND SERVICE TAX
DEPARTMENT, KOZHIKODE-673006.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695001
- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY(TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695001.

R1 TO R3 BY SRI.C.E.UNNIKRISHNAN, SPL.GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10404 OF 2019(A)

PETITIONER:

CHAKOLAS HOMES PVT.LTD.,
KUTTAMPARAMBIL BUILDINGS, PANDITKARUPPAN ROAD,
THEVARA, ERNAKULAM. REPRESENTED BY ITS MANAGING
DIRECTOR, MR. MATHEW L CHAKOLAS

BY ADVS.SRI.A.KUMAR

SRI.P.J.ANILKUMAR
SMTG.MINI(1748)
SRI.P.S.SREE PRASAD
SHRI.ABRAHAM JOB
SRI.AJAY V.ANAND

RESPONDENTS:

- 1 STATE OF KERALA,
REPRESENTED BY ITS SECRETARY (TAXES)
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM - 695 001
- 2 THE ASSISTANT COMMISSIONER (WORKS CONTRACT)
STATE GOODS AND SERVICE TAX DEPARTMENT, SGST COMPLEX,
PERUMANOOR, ERNAKULAM, KOCHI - 682 015

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL.GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10420 OF 2019(B)

PETITIONER:

MARICO LTD.,
VIII/761A, NIDA, MENONPARA ROAD, KANJIKODE, PALAKKAD,
REPRESENTED BY ITS AUTHORISED SIGNATORY
SREENIVASAN T.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 THE ASST. COMMISSIONER OF STATE TAX,
STATE GOODS AND SERVICES TAX DEPARTMENT,
SPECIAL CIRCLE, BEHIND CIVIL STATION, PALAKKAD,
PIN-678001.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM-695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10510 OF 2019(K)

PETITIONER:

MS.HILLWOOD FURNITURE PVT. LTD.
NH ROAD, FEROKE, CALICUT-673631, REP. BY V.SHAREEF,
MANAGING DIRECTOR.

BY ADV. SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, SPECIAL CIRCLE-II,
CALICUT-673006.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695001.
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695001.

R1-R3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10546 OF 2019(P)

PETITIONER:

M/S.J.D.DIAGNOSTIC PVT.LTD.
3/1722,AB GEM SQUARE, LABOUR COLONY ROAD,
THAMMANAM,REPRESENTED BY ITS JT, MANAGING DIRECTOR
JACOB GEORGE.K. ,

BY ADVS.SMT.S.K.DEVI
SRI.SANTHOSH P.ABRAHAM

RESPONDENTS:

- 1 THE ASST. COMMISSIONER(ASSMT)
COMMERCIAL TAXES, SPECIAL CIRCLE-I,
ERNAKULAM-682 015
- 2 THE DEPUTY COMMISSIONER
KERALA STATE GOODS AND SERVICE TAX DEPT.,
ERNAKULAM-682 015
- 3 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY, SECRETARIAT,
THIRUVANANTHAURAM-695 001

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10718 OF 2019(L)

PETITIONER:

MS.PRIYADARSHINI,
AGED 79 YEARS
PROP: INTER SOURCE EXPORTS(P) LTD, WAYANAD ROAD,
CALICUT-673 001,REP.BY. K.T.RAGHUNATH, MANAGING
DIRECTOR.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, SPECIAL CIRCLE - I,
CALICUT - 673 006.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695 001
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10722 OF 2019(M)

PETITIONER:

MS.HILLWOOD TIMBERS,
MAKKARAPARAMBA, MALAPPURAM-676507,
REP.BY.V SHAREEF, MANAGING PARTNER.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX
SGST DEPARTMENT, SPECIAL CIRCLE, MALAPPURAM-676505.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695001.
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR
FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

WP(C).No.10751 OF 2019(T)

PETITIONER:

M/S.MALABAR GOLD (P) LTD.
RAM MOHAN ROAD, KOZHIKODE,
REPRESENTED BY ITS DIRECTOR, MR. ABDUL MAJEED.M.,

BY ADVS.N.VENKATARAMAN (SR)
SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SHRI.AKHIL SURESH
SMT.T.ARCHANA

RESPONDENTS:

- 1 STATE TAX OFFICER
3RD CIRCLE,STATE GOODS AND SERVICE TAX DEPARTMENT,
KOZHIKODE-673 006
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695 001
- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695 001

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.10820 OF 2019(B)

PETITIONER:

M/S. ZODIAC ADVERTISERS
P.B.NO.2064,KADAVANTHRA,KOCHI-20.
REPRESENTED BY ITS MANAGING PARTNER
JOHNSON V.GEORGE.

BY ADVS.SRI.SANTHOSH P.ABRAHAM
SMT.S.K.DEVI

RESPONDENTS:

- 1 THE ASST. COMMISSIONER (WORKS CONTRACT)
O/O THE DEPUTY COMMISSIONER,
KERALA STATE GOODS AND SERVICE TAX DEPT.,
ERNAKULAM-682015.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS AND SERVICE TAX DEPT.
ERNAKULAM-682015.
- 3 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY,SECRETARIAT,
THIRUVANANTHAPURAM-695001.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11046 OF 2019(E)

PETITIONER:

SILPA PROJECTS & INFRASTRUCTURE INDIA PVT.LTD,
NORTH AVENUE, DOOR NO.41/2795, E, E1, III FLOOR,
PARAMARA ROAD, ERNAKULAM NORTH, KOCHI- 682018
(REPRESENTED BY SRI.T.S.SANIL, MANAGING DIRECTOR).

BY ADVS.SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER,
WORKS CONTRACT, O/O. THE DEPUTY COMMISSIONER,
STATE GOODS AND SERVICES TAX DEPARTMENT, THEVARA,
ERNAKULAM, KOCHI- 682015.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, PIN- 695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11067 OF 2019(G)

PETITIONER:

TEKTON CORPORATION
DOOR NO.39/1815(12), AMRITA TRADE
TOWER,S.A.ROAD,PALLIMUKKU,ERNAKULAM-682016,
REPRESENTED BY ITS PARTNER SRI.GEORGE VARGHESE.

BY ADV. SRI.K.S.HARIHARAN NAIR

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICES TAX DEPARTMENT,
FOURTH CIRCLE,
ERNAKULAM-682018.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO
GOVERNMENT,TAXES DEPARTMENT,GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM-695001.

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11206 OF 2019(A)

PETITIONER:

MANGALY INDUSTRIES (P) LIMITED
10/285, RED HILL ESTATE, KALLEKULANGARA, PALAKKAD,
REPRESENTED BY ITS MANAGING DIRECTOR JOE MANGALY

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICES TAX DEPARTMENT,
FIRST CIRCLE, PALAKKAD, PIN - 678001
- 2 THE STATE OF KERALA
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695001

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND
CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE
FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11340 OF 2019(N)

PETITIONER:

CEE VEE FOOTWEAR INDIA PVT LTD.
NH ROAD, CHUNGAM, FEROKE CALICUT-673 631
REP. BY V.SHAREEF, MANAGING PARTNER

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

1 ASSISTANT COMMISSIONER OF STATE OF TAX,
SGST DEPARTMENT, SPECIAL CIRCLE-II,
CALICUT -673006

2 GOVERNMENT OF KERALA
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695001

3 COMMISSIONER OF COMMERCIAL TAXES
THIRUVANANTHAPURAM-695001

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11341 OF 2019(P)

PETITIONER:

HILLWOOD IMPORTS & EXPORTS PVT. LTD
N.H ROAD, FEROKE, CALICUT 673 631,
REPRESENTED BY V. SHAREEF, MANAGING DIRECTOR.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

1 ASSISTANT COMMISSIONER- II,

SPECIAL CIRCLE-II SGST DEPARTMENT, KOZHIKODE 673 006.

2 GOVERNMENT OF KERALA
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM 695 001.

3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND
CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE
FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11346 OF 2019(P)

PETITIONER:

HILLWOOD FURNITURE PVT. LTD
N.H.ROAD, FEROKE, CALICUT-673631,
REP.BY.V.SHAREEF,MANAGING DIRECTOR.

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

1 ASSISTANT COMMISSIONER (ASSMT II)
SPL.CIRCLE-II,SGST DEPARTMENT,
KOZHIKODE-673006.

2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM-695001.

3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM-695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD

ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11391 OF 2019(Y)

PETITIONER:

M/S.AJA ASSOCIATES
T.D.SANNIDHI ROAD, PALARIVATTOM-682 025,
REPRESENTED BY ITS MANAGING PARTNER ANIL K.JOSEPH.

BY ADVS.SRI.AJI V.DEV
SMT.O.A.NURIYA
SRI.ALAN PRIYADARSHI DEV

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
SPECIAL CIRCLE II, S.G.S.T. DEPARTMENT,
PERUMANOOR P.O., ERNAKULAM-682 015.
- 2 THE COMMISSIONER OF STATE TAXES
TAX TOWER, KILLIPPALAM, KARAMANA P.O.,
THIRUVANANTHAPURAM-695 002.
- 3 THE STATE OF KERALA
REPRESENTED BY IT'S SECRETARY TO TAXES,
SECRETARIAT, THIRUVANANTHAPURAM-695 002.

R1-3 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11433 OF 2019(D)

PETITIONER:

M/S.JAIN HOUSING & CONSTRUCTIONS LTD.
39/5176, PLOT NO.361, PANAMPILLY NAGAR,
COCHIN- 682036, REPRESENTED BY ITS
AUTHORIZED SIGNATORY.

BY ADVS.SRI.RAJESH NAMBIAR
SRI.N.R.SAJ

RESPONDENTS:

- 1 STATE TAX OFFICER (WORKS CONTRACT),
OFFICE OF THE DEPUTY COMMISSIONER OF STATE TAX,
WORKS CONTRACT, DEPARTMENT OF STATE GOODS AND SERVICE
TAX, PERUMANOOR, KOCHI- 682015.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM- 695001.
- 3 STATE OF KERALA,
REPRESENTED BY ITS SECRETARY, TAXES DEPARTMENT,
GOVT. SECRETARIAT, THIRUVANANTHAPURAM- 695001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11466 OF 2019(G)

PETITIONER:

BRIDGESTONE INDIA PRIVATE LIMITED,
ESEN BUILDING, PUTHIYA ROAD, IRIMPANAM, TRIPUNITHURA,
ERNAKULAM DISTRICT, REPRESENTED BY ITS AUTHORISED
SIGNATORY N.V.PADMANABHAN.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 STATE TAX OFFICER,
OFFICE OF THE ASST. COMMISSIONER (ASSESSMENT),
STATE GOODS AND SERVICES TAX DEPARTMENT,
SPECIAL CIRCLE I, ERNAKULAM, KOCHI, PIN - 682 015.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11586 OF 2019(W)

PETITIONER:

N.AYYAPPAN NAIR,
AGED 76 YEARS
S/O.GOPALAN NAIR, NJARAKKAT HOUSE,
GURUVAYOOR, THRISSUR DISTRICT.

BY ADVS.SRI.HARISANKAR V. MENON
SMT.MEERA V.MENON
SMT.K.KRISHNA

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER,
DEPARTMENT OF SGST, SPECIAL CIRCLE,
THRISSUR - 680 004.
- 2 THE COMMISSIONER OF COMMERCIAL TAXES,
TAX TOWERS, KILLIPALAM, KARAMANA,
THIRUVANANTHAPURAM - 695 002.

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED

CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11648 OF 2019(E)

PETITIONER:

M/S.DRIPLEX WATER ENGINEERING LIMITED
C/O BHARATH PETROLEUM CORPORATION LTD, KOCHI REFINERY,
ERNAKULAM-682302.REPRESENTED BY ITS AUTHORISED
SIGNATORY SHRI MADHAVAN NARAYANKUTTY.

BY ADVS.SRI.G.HARIKUMAR (GOPINATHAN NAIR)
SHRI.AKHIL SURESH

RESPONDENTS:

- 1 THE STATE OF KERALA
REPRESENTED BY THE PRINCIPAL SECRETARY GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM-695001.
- 2 THE ASSISTANT COMMISSIONER(WORKS CONTRACT),
OFFICE OF THE DEPUTY COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
REVENUE TOWER,9TH FLOOR,
ERNAKULAM-682011.

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY
HEARD ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND
CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE
FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11653 OF 2019(F)

PETITIONER:

SHIBI BABU
AGED 43 YEARS
PROPRITORIX,
M/S.GLORIA SERVICES, 39/6180-A, SECOND FLOOR CEARS
BUILDINGS, ALAPPATTU CROSS ROAD, RAVIPURAM, ERNAKULAM.

BY ADVS.SMT.S.K.DEVI
SRI.SANTHOSH P.ABRAHAM

RESPONDENTS:

- 1 THE STATE TAX OFFICER,
KERALA STATE GOODS AND SERVICE TAX DEPT.
IVTH CIRCLE, ERNAKULAM - 682 018.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS & SERVICE TAX DEPT.,
ERNAKULAM - 682 015.
- 3 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY,
SECRETARIAT, THIRUVANANTHAPURAM-695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVT. PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11776 OF 2019(V)

PETITIONER:

ASTRIDE BUILDERS AND DEVELOPERS PRIVATE LIMITED,
TC 10/17 18 1ST AND 2ND FLOOR, BINDEEPAM, PIPPINMOODU,
PEROORKADA, THIRUVANANTHAPURAM - 695 005,
REPRESENTED BY ITS MANAGING DIRECTOR SYAM D.PILLAI.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
RAJAGOPAL M

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX,
STATE GOODS AND SERVICES TAX DEPARTMENT,
WORKS CONTRACT, TAX TOWERS,
THIRUVANANTHAPURAM,
PIN - 695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

WP(C).No.11932 OF 2019(N)

PETITIONER:

MOHANDAS MOTORS PVT.LTD.,
VAZHAYILA, PEROORKADA,
THIRUVANANTHAPURAM - 695 005, REPRESENTED BY ITS
DIRECTOR KRISHNA MOHAN.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
SPECIAL CIRCLE, TAX TOWERS, KARAMANA,
THIRUVANANTHAPURAM, PIN - 695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

R1-2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON

04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.11973 OF 2019(V)

PETITIONER:

EHITUS BUILDERS INTERIORS AND REALTORS,
TC 4/1702, 1, HOUSE NO.20, BELHAVEN GARDENS,
KOWDIAR P.O., THIRUVANANTHAPURAM, REPRESENTED BY ITS
MANAGING PARTNER R.PADMAKUMAR.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 STATE TAX OFFICER (WORKS CONTRACT),
STATE GOODS AND SERVICES TAX DEPARTMENT,
WORKS CONTRACT, TAX TOWERS, KARAMANA,
THIRUVANANTHAPURAM, PIN- 695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

WP(C).No.12022 OF 2019(C)

PETITIONER:

M/S.POLJO AGENTS AND DISTRIBUTORS
MULLAKAD, IRINJALAKUDA, REPRESENTED BY ITS PROPRIETOR,
SHRI PAUL JOSE.

BY ADVS.SRI.G.HARIKUMAR (GOPINATHAN NAIR)
SHRI.AKHIL SURESH

RESPONDENTS:

- 1 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM- 695001.
- 2 THE ASSISTANT COMMISSIONER OF STATE TAX (ASSESSMENT),
SGST DEPT., SPECIAL CIRCLE, THRISSUR- 680003.

R1 - R2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12049 OF 2019(E)

PETITIONER:

K.V.JOSEPH AND SONS
XXVII, KURIEKKAL BUILDING, EDAPPALLY, KOCHI-682 024,
ERNAKULAM DISTRICT. (REPRESENTED BY SRI. THOMAS K.J,
PARTNER)

BY ADVS.SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
CLAS TOWERS, 2ND FLOOR, OLD RAILWAY STATION ROAD,
ERNAKULAM, KOCHI-682 018.
- 2 STATE OF KERALA

REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695 001.

R1-R2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12056 OF 2019(F)

PETITIONER:

M/S.ROYAL CONSTRUCTIONS,
1/58, PALAPRASSERY, CHENGAMANAD P.O., ERNAKULAM
DISTRICT, REPRESENTED BY ITS MANAGING PARTNER,
HASSAN N.S., AGED 64, S/O.SYED MOHAMMED.

BY ADVS.SRI.HARISANKAR V. MENON
SMT.MEERA V.MENON
SMT.K.KRISHNA

RESPONDENTS:

- 1 THE STATE TAX OFFICER(WC),
OFFICE OF THE DEPUTY COMMISSIONER,
DEPARTMENT OF SGST, MATTANCHERRY - 682 002.
- 2 THE COMMISSIONER OF COMMERCIAL TAXES,
TAX TOWERS, KILLIPPALAM, KARAMANA,
THIRUVANANTHAPURAM - 695 002.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12104 OF 2019(K)

PETITIONER:

SKYBOND GLAZING
XIX/27IB, STAR HOMES ROAD, TRIPUNITHURA, PIN-682 301,
PRESENTLY AT 22/1017C, EDAKOCHI, PIN-682 010,
ERNAKULAM DISTRICT, REPRESENTED BY ITS MG.PARTNER,
K.P.MURALEEDHARAN.

BY ADV. SRI.R.MURALEEDHARAN

RESPONDENTS:

- 1 THE COMMERCIAL TAX OFFICER(WC & LT)
OFFICE OF THE DEPUTY COMMISSIONER, COMMERCIAL TAXES
DEPARTMENT, CLAS TOWER, 2ND FLOOR, OLD RAILWAY STATION
ROAD, ERNAKULAM, KOCHI,PIN-682 018.
- 2 STATE OF KERALA
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, ,PIN-695001.

R1 - R2 BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12182 OF 2019(W)

PETITIONER:

POORNA BHARATH GAS AGENCY,
UDIYANKULANGARA, AMARAVILA P.O., THIRUVANANTHAPURAM
DISTRICT, REPRESENTED BY ITS PROPRIETRESS DHARSANA
VISHNU.

BY ADVS,SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 THE ASST. COMMISSIONER OF STATE TAX (WORKS CONTRACT),
STATE GOODS AND SERVICES TAX DEPARTMENT, TAX TOWERS,
KARAMANA, THIRUVANANTHAPURAM, PIN - 695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12260 OF 2019(F)

PETITIONER:

GVR CONSTRUCTIONS
TC 16/918(20), PANCHAMY GARDEN, JAGATHY,
THIRUVANANTHAPURAM, REPRESENTED BY ITS AUTHORISED
SIGNATORY PADMANABHAN.

BY ADVS.SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER OF STATE TAX
STATE GOODS AND SERVICES TAX DEPARTMENT,
WORKS CONTRACT, TAX TOWERS,
THIRUVANANTHAPURAM,PIN-695 002.
- 2 THE STATE OF KERALA
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM-695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12398 OF 2019(Y)

PETITIONER:

M/S.O.V.TRADERS
THOTTUMUKKAM P.O.AREACODE, KOZHIKODE 673 639

BY ADVS.SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER (ASSMT)1,11
SPL. CIRCLE-11, SGST DEPARTMENT, KOZHIKODE 673 006.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM 695 001.
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM 695 001.

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD
ON 04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12500 OF 2019(J)

PETITIONER:

M/S.VEEKESY POLIMERS
RAMANATUKARA, KOZHIKODE, REPRESENTED BY ITS MANAGING
DIRECTOR, RAFEEQUE.V

BY ADVS.SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SHRI.AKHIL SURESH
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
SPECIAL CIRCLE II, STATE GOODS AND SERVICE TAX
DEPARTMENT, KOZHIKODE 673006
- 2 THE COMMISSIONER
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM, 695001
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM, 695001

BY SRI.C.E.UNNIKRISHNAN, SPL. GOVT. PLEADER

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019 ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED CASES,
THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12630 OF 2019(C)

PETITIONER:

M/S.MILLENNIUM AUDIOS,
6/459, PUTHIYEDATH BUILDING, BANK ROAD, KOZHIKODE,
REPRESENTED BY ITS PROPRIETOR P.SAJITH.

BY ADV. SRI.JOSEPH SEBASTIAN PURAYIDAM

RESPONDENTS:

- 1 STATE OF KERALA,
REPRESENTED BY CHIEF SECRETARY,

GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM - 695 001.

- 2 THE COMMISSIONER OF STATE TAX,
STATE GST DEPARTMENT, THIRUVANANTHAPURAM - 695 001.
- 3 ASSISTANT COMMISSIONER OF STATE TAX,
SPL.CIRCLE, STATE GST DEPARTMENT, KOZHIKODE - 673 006.
- 4 STATE TAX OFFICER,
2ND CIRCLE, OFFICE OF THE STATE TAX OFFICER, 2ND CIRCLE,
SGST DEPARTMENT, KOZHIKODE - 673 006.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.12808 OF 2019(A)

PETITIONER:

SOUBHAGYAM FOOD INDUSTRIES PVT.LTD.,
PUTHIYANGADI, CALICUT - 673 021, BY P.V.CHANDRAN,
MANAGING DIRECTOR.

BY ADVS.
SRI.P.RAGHUNATH
SRI.PREMJIT NAGENDRAN

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER,
SPECIAL CIRCLE-I, KOZHIKODE - 673 006.
- 2 GOVERNMENT OF KERALA,
REPRESENTED BY CHIEF SECRETARY,
THIRUVANANTHAPURAM - 695 001.
- 3 COMMISSIONER OF COMMERCIAL TAXES,
THIRUVANANTHAPURAM - 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON

04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

W.P(C).No.13149 OF 2019(P)

PETITIONER:

M/S.CHAKOLAS KUNNEL DEVELOPERS
26/2075 F, PANDIT KARUPPAN ROAD, THEVARA,
ERNAKULAM, -682013 REPRESENTED BY ITS MANAGING PARTNER,
MR.MATHEW L CHAKOLAS

BY ADVS.
SRI.A.KUMAR
SRI.P.J.ANILKUMAR
SMTG.MINI(1748)
SRI.P.S.SREE PRASAD
SHRI.ABRAHAM JOB
SRI.AJAY V.ANAND

RESPONDENTS:

- 1 STATE OF KERALA
REPRESENTED BY ITS SECRETARY(TAXES), GOVERNMENT
SECRETARIAT, THIRUVANNATHAPURAM-695001
- 2 THE STATE TAX OFFICER(WORKS CONTRACT)
O/O. THE DEPUTY COMMISSIONER STATE GOODS AND SERVICE TAX
DEPARTMENT, STATE GOODS AND SERVICE TAX COMPLEX
PERUMANOOR, KOCHI -682015.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH W.P(C).NO.9963/2019 AND CONNECTED
CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019/15TH AGRAHAYANA, 1941

WP(C) .No.13444 OF 2019(E)

PETITIONER:

SREE AYYAPPAN AGENCIES,
TC 3/2454(4), TDK ROAD, EAST PATTOM,
THIRUVANANTHAPURAM, REPRESENTED BY ITS PROPRIETOR
RAJESH.

BY ADVS.
SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER-1(ASSESSMENT),
SPECIAL CIRCLE, TAX TOWERS, KARAMANA,
THIRUVANANTHAPURAM,
PIN - 695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.13887 OF 2019(I)

PETITIONER:

M/S.MALABAR LATEX (P) LTD.
THENGALLOOR P.O., THRISSUR, REPRESENTED BY ITS MANAGING
DIRECTOR, A.V.ABDUL GAFOOR.

BY ADVS.
SMT.S.K.DEVI
SRI.SANTHOSH P.ABRAHAM

RESPONDENTS:

- 1 THE STATE TAX OFFICER
KERALA STATE GOODS AND SERVICE TAX DEPT., III CIRCLE,
STATE TAX COMPLEX, POOTHOLE, THRISSUR-680004.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS AND SERVICE TAX DEPT., STATE TAX
COMPLEX, POOTHOLE, THRISSUR-680004.
- 3 THE ASST. COMMISSIONER OF STATE TAX,
KERALA STATE GOODS AND SERVICE TAX DEPT., STATE TAX
COMPLEX, POOTHOLE, THRISSUR-680004.
- 4 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY, SECRETARIAT,
THIRUVANANTHAPURAM-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.13957 OF 2019(T)

PETITIONER:

TRADE HOUSE
PERUMBA, PAYYANNUR, KANNUR DISTRICT, REPRESENTED BY ITS
PROPRIETOR, SHAKEER ALI.

BY ADVS.
SRI.S.ANIL KUMAR (TRIVANDRUM)
SRI.M.RAJAGOPAL

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICES TAX DEPARTMENT, PAYYANNUR,
KANNUR DISTRICT-670 307.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE PRINCIPAL SECRETARY TO GOVERNMENT,
TAXES DEPARTMENT GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.14071 OF 2019(H)

PETITIONER:

M/S THAJUDEEN A.
PP 7/357, THOPPIL VEEDU, THOLIKUZH, ADAYAMOM(P.O),
THIRUVANANTHAPURAM
REPRESENTED BY ITS PROPRIETOR, SRI.THAJUDEEN A
BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

1. THE ASSISTANT COMMISSIONER
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695002
2. THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695002
3. STATE OF KERALA,
REPRESENTED BY SECRETARY(TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695001.
4. THE DEPUTY COMMISSIONER (APPEALS),
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE

COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.14570 OF 2019(U)

PETITIONER:

MOLLY GEORGE
AGED 57 YEARS
PROPRITRIX, M/S.GEO TRADERS, PDDP OLD BUILDING,
MARITTICHODU, KALADY, ERNAKULAM DISTRICT.

BY ADVS.
SRI.P.S.SOMAN
SMT.T.RADHAMANY
SRI.K.SUNDAR

RESPONDENTS:

- 1 STATE TAX OFFICER -I
SPECIAL CIRCLE, SGST DEPARTMENT, MATTANCHERY AT ALUVA-
683101
- 2 THE STATE OF KERALA,
REPRESENTED BY THE SECRETARY, TAXES DEPARTMENT, GOVT
SECRETARIAT, THIRUVANANTHAPURAM-695001
- 3 THE COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, GOVERNMENT OF KERALA, TAX TOWER,
KARAMANA.P.O, THIRUVANANTHAPURAM-695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.14833 OF 2019(D)

PETITIONER:

VENKITESH PRASAD
AGED 35 YEARS
PROPRIETOR, 'M/S. PRESEDIUM GROUP', ULIYAKOVIL, KOLLAM
DISTRICT, PIN - 691 002.

BY ADV. SRI.BOBBOY JOHN

RESPONDENTS:

- 1 THE COMMISSIONER OF STATE GOODS AND SERVICE TAX
DEPARTMENT
KERALA TAX TOWER, KILLIPPALAM, KARAMANA,
THIRUVANANTHAPURAM - PIN - 695 002.
- 2 THE STATE TAX OFFICER
WORKS CONTRACT, KOLLAM, SGST DEPARTMENT, KOLLAM,
PIN - 691 002.
- 3 STATE OF KERALA
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, SECRETARIAT, THIRUVANANTHAPURAM - 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.15037 OF 2019(D)

PETITIONER:

SRI.SUGUNA MACHINE WORKS (P) LTD
39/4328A, KARIMPATTA CROSS ROAD, PALLIMUKKU, ERNAKULAM,
KOCHI-682016, (REPRESENTED BY SRI.SKANTHARAJAN, P.N,
PARTNER)

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)

RESPONDENTS:

- 1 STATE TAX OFFICER
4TH CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT, CLAS
TOWERS, OLD RAILWAY STATION ROAD, ERNAKULAM, KOCHI-
682018.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695001.
- 3 THE INSPECTING ASSISTANT COMMISSIONER,
STATE GOODS AND SERVICES TAX DEPARTMENT, KAKKANAD,
KOCHI-682030.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.15633 OF 2019(D)

PETITIONER:

M/S.INDUS MOTOR COMPANY PRIVATE LIMITED
M. G. ROAD, THEVARA, ERNAKULAM - 682015, REPRESENTED BY
ITS GENERAL MANAGER (FINANCE AND AUDIT) MR. ANAS K. P.

BY ADVS.
SMT.K.LATHA
SMT.JESSY MANUEL

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER (ASSESSMENT)
SPECIAL CIRCLE - II, SGST DEPARTMENT, CIVIL STATION AT
KAKKANAD, ERNAKULAM - 682 015.
- 2 THE STATE ASSISTANT COMMISSIONER/
INSPECTING ASSISTANT COMMISSIONER, SGST DEPARTMENT,

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.15957 OF 2019(T)

PETITIONER:

T.BASHEER,
AGED 63 YEARS
CONTRACTOR, ARYATTU PADETHATHIL HOUSE, MAVELIKKARA,
ALAPPUZHA, PIN-690101.

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER,
WORKS CONTRACT, STATE GOODS AND SERVICES TAX DEPARTMENT,
ALAPPUZHA, PIN-688001.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695001.
- 3 ASSISTANT COMMISSIONER (REVENUE RECOVERY),
STATE GOODS AND SERVICES TAX DEPARTMENT, CHENGANNUR,
PIN-689121.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

Baiju A.A vs State Tax Officer on 6 December, 2019
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16001 OF 2019(A)

PETITIONER:

C.DEVARAJ
AGED 57 YEARS
AMBALATHUVILA HOUSE, IKKARAMATTOM P.O, IRIMPANAM,
ERNAKULAM-682 309

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 COMMERCIAL TAX OFFICER,
WORKS CONTRACT, O/O THE DEPUTY COMMISSIONER, STATE GOODS
AND SERVICES TAX DEPARTMENT, CLASS TOWERS, OLD RAILWAY
STATION ROAD, ERNAKULAM, KOCHI-682 018
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695 001
- 3 ASSISTANT COMMISSIONER (REVENUE RECOVERY)
STATE GOODS AND SERVICES TAX DEPARTMENT, CIVIL STATION,
KAKKANAD, ERNAKULAM, KOCHI-682 030

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C) .No.16018 OF 2019(B)

PETITIONER:

RAJKUMAR P.
AGED 51 YEARS
HOUSE NO.37,TC 3/889,LMS NAGAR, MUTTADA.P.O.,
THIRUVANANTHAPURAM DISTRICT,PIN-695 025

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER
WORKS CONTRACT,STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695 001
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM,PIN-695 001
- 3 ASSISTANT COMMISSIONER OF STATE TAX,
STATE GOODS AND SERVICES TAX DEPARTMENT,
THIRUVANANTHAPURAM-695 001

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C) .No.16094 OF 2019(J)

PETITIONER:

SURABHI STEEL CASTINGS PVT.LTD
NEW INDUSTRIAL DEVELOPMENT AREA, KANJIKODE P.O.,
PALAKKAD, REPRESENTED BY ITS DIRECTOR SRI. SIAUDEEN M.A.

BY ADV. SRI.SOJAN JAMES

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER SPL. CIRCLE
DEPARTMENT OF COMMERCIAL TAXES,
STATE GST DEPARTMENT KERALA
PALAKKAD-678 001.
- 2 THE COMMISSIONER OF COMMERCIAL TAXES
DEPARTMENT OF COMMERCIAL TAXES, THIRUVANANTHAPURAM-695
001.

R1-2 BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16162 OF 2019(U)

PETITIONER:

SURABHI STEEL TUBES PVT. LTD.
NEW INDUSTRIAL DEVELOPMENT AREA KANJIKODE P.O.PALAKKAD,
REPRESENTED BY ITS DIRECTOR M.A ZIAUDEEN.

BY ADV. SRI.SOJAN JAMES

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
SPECIAL CIRCLE, DEPARTMENT OF COMMERCIALS TAXES, STATE
GST DEPARTMENT, KERALA, PALAKKAD-678 001.
- 2 THE COMMISSIONER OF COMMERCIAL TAXES,
DEPARTMENT OF COMMERCIAL TAXES, THIRUVANANTHAPURAM-695
001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16191 OF 2019(Y)

PETITIONER:

M/S.PARISON FOODS PVT. LTD
CHEROOTTY ROAD, KOZHIKODE, REPRESENTED BY ITS MANAGING
DIRECTOR, N.K. MOHAMMED ALI.

BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER-1
SPECIAL CIRCLE I, STATE GOODS AND SERVICE TAX
DEPARTMENT, KOZHIKODE-673 006.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695 001
- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695 001

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16214 OF 2019(B)

PETITIONER:

M/S.ARJU VAASTU BUILDERS AND ENGINEERS PRIVATE LIMITED

UTHRADOM, TC 11/2100(5), POTTAKKUZHY, THEKKUMOODU ROAD,
PATTON (P.O.), THIRUVANANTHAPURAM, REPRESENTED BY ITS
MANAGING DIRECTOR B. ARJUNAN.

BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBANAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER OF STATE TAX
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM - 695 002.
- 2 THE COMMISSIONER
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM - 695 002.
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.
- 4 DEPUTY COMMISSIONER (APPEALS)
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM - 695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16277 OF 2019(H)

PETITIONER:

M/S. PURAVANKARA LTD.
PURVANKARA LTD,G-261,PANAMPILLY AVENUE,PANAMPILLY
NAGAR,KOCHI-682036,REPRESENTED BY REGIONAL
HEAD,KERALA,SRI.RANJIT THOMAS.

BY ADVS.
SRI.RAJESH NAMBIAR
SRI.N.R.SAJ

RESPONDENTS:

- 1 STATE TAX OFFICER(WORKS CONTRACT),
STATE GOODS AND SERVICE TAX DEPARTMENT,REVENUE
TOWER,ERNAKULAM,
PIN-682031.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX
DEPARTMENT,THIRUVANANTHAPURAM-695001.
- 3 STATE OF KERALA,
REPRESENTED BY ITS SECRETARY,
TAXES DEPARTMENT,GOVT.SECRETARIAT,
THIRUVANANTHAPURAM-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16778 OF 2019(V)

PETITIONER:

ABDUL RAHIMAN.P.V
AGED 62 YEARS
PROPRIETOR , M/S KOYAS AGENCIES, 1/900, DEEPIKA,
COMPLEX, KODUMBU, PALAKKAD DISTRICT, PALAKKAD, PIN 678
501.

BY ADVS.
SRI.R.MURALEEDHARAN
DR.ANIES GEORGE

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICES TAX DEPARTMENT, SECOND CIRCLE,
PALAKKAD, PALAKKAD DISTRICT, PIN 678 001.
- 2 STATE OF KERALA,
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES

Baiju A.A vs State Tax Officer on 6 December, 2019
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN 695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16896 OF 2019(J)

PETITIONER:

KURUVITHADAM AGENCIES PVT.LTD
KACHERITHAZHAM, MUVATTUPUZHA-686 661, HEAD OFFICE AT M.G
ROAD, ERNAKULAM, KOCHI-682 015, (REPRESENTED BY SRI
CHARLES MATHEW, DIRECTOR),

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
SPECIAL CIRCLE, STATE GOODS AND SERVICES TAX DEPARTMENT,
PERUMBAVOOR-683 542.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, SECRETARY TO
GOVERNMENT, TAXES DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, PIN 695 001.
- 3 ASSISTANT COMMISSIONER,
RECOVERY, STATE GOODS AND SERVICES TAX DEPARTMENT,
MUVATTUPUZHA-686 661.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.16907 OF 2019(K)

PETITIONER:

ROYAL ENTERPRISES,
XXI/652, 2ND FLOOR, STATUE JUNCTION, TRIPUNITHURA,
PIN - 682 301, ERNAKULAM DISTRICT, (REPRESENTED BY
SRI.NANDAKUMAR M., PARTNER).

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER,
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
PERUMANOOR, THEVARA, ERNAKULAM, KOCHI - 682 015.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM-
695 001.
- 3 THE ASSISTANT COMMISSIONER,
RECOVERY, STATE GOODS AND SERVICES TAX DEPARTMENT,
KAKKANAD, KOCHI - 682 030.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.17041 OF 2019(E)

PETITIONER:

M/S.SREEDHANYA HOMES PRIVATE LTD
T.C. 9/875, SASTHAMANGALAM, THIRUVANANTHAPURAM
REPRESENTED BY ITS MANAGING DIRECTOR, DHANYA BABU

BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBHA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER OF STATE TAX
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695002
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695002.
- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.17060 OF 2019(F)

PETITIONER:

COIMBATORE ELECTRIC ENGINEERING CORPORATION
39/3926, KIZHAKKEPUSHPAKAM, RAVIPURAM ROAD, ERNAKULAM,
COCHIN 682 016, REPRESENTED BY ITS MANAGING PARTNER U.K
MENON.

BY ADVS.
SRI.R.MURALEEDHARAN
DR.ANIES GEORGE

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER

KVAT SPECIAL CIRCLE-II, STATE GOODS AND SERVICES TAX
DEPARTMENT, COMMERCIAL TAX COMPLEX, ERNAKULAM, COCHIN,
PIN 682 015

- 2 STATE OF KEERALA,
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN 695 002

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.17629 OF 2019(C)

PETITIONER:

KERALA STATE CIVIL SUPPLIES CORPORATION LTD
(SUPPLYCO DISTRICT DEPOT),
ALAPPUZHA REPRESENTED BY ITS JUNIOR, MANAGER,
(IN CHARGE OF DEPOT MANGER), SRI.R. SANJAYNATH
CONTACT 7025834294/8547851723.

BY ADVS.
SRI.AJI V.DEV
SMT.O.A.NURIYA
SRI.ALAN PRIYADARSHI DEV

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE G.S.T DEPARTMENT, FIRST CIRCLE, ALAPPUZHA-688001.
- 2 ASSISTANT COMMISSIONER OF STATE TAX,
STATE G.S.T DEPARTMENT, ALAPPUZHA-688001.
- 3 THE COMMISSIONER OF STATE TAXES, TAX TOWER, KILLIPPALAM,
KARAMANA P.O.,
THIRUVANANTHAPURAM 695 002.
- 4 THE STATE OF KERALA
REPRESENTED BY ITS SECRETARY TO TAXES,
SECRETARIAT, THIRUVANANTHAPURAM 695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.17630 OF 2019(C)

PETITIONER:

M. T. THOMAS
AGED 60 YEARS
PROPRIETOR, M/S NILAMBOOR FURNITURE, PADINJATTIL PLAZA,
PONNURUNNI, THAMMANAM, ERNAKULAM DISTRICT

BY ADVS.
SRI.P.S.SOMAN
SMT.T.RADHAMANY

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER (ASSMT.)
SPECIAL CIRCLE - III, SGST DEPARTMENT, TAX COMPLEX,
ERNAKULAM - 682015
- 2 THE STATE OF KERALA
REPRESENTED BY THE SECRETARY, TAXES DEPARTMENT,
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM - 695 001
- 3 THE COMMISSIONER OF STATE TAX
SGST DEPARTMENT, GOVERNMENT OF KERALA, TAX TOWER,
KARAMANA P. O., THIRUVANANTHAPURAM - 695 002

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING::

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.17655 OF 2019(F)

PETITIONER:

HOTELTEK BEVERAGES (P) LTD.
TC .8/1878 (3), MAVELIKKALAM, UDAYAGIRI NAGAR, THIRUMALA
P.O.THIRUVANANTHAPURAM, REPRESENTED BY M R NARAYANAN,
MANAGING DIRECTOR.

BY ADVS.
SRI.P.S.SOMAN
SMT.T.RADHAMANY

RESPONDENTS:

- 1 STATE TAX OFFICER
1ST CIRCLE,SGST DEPARTMENT, TAX TOWER,KARAMANA
P.O.THIRUVANANTHAPURAM-695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE SECRETARY, TAXES DEPARTMENT,
GOVT.SECRETARIAT, THIRUVANANTHAPURAM-695 001.
- 3 THE COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, GOVERNMENT OF KERALA, TAX TOWER,
KARAMANA P.O.THIRUVANANTHAPURAM-695 002.
- 4 ASSISTANT COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, TAX TOWER, KARAMANA P.O.
THIRUVANANTHAPURAM-695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.18768 OF 2019(U)

PETITIONER:

PALA MARKETING CO-OPERATIVE SOCIETY

CHETHIMATTOM, PALA 686 575, REPRESENTED BY ITS SECRETARY
SMT. ROSELY THOMAS, CONTACT 9447091300

BY ADVS.
SRI.AJI V.DEV
SMT.O.A.NURIYA
SRI.ALAN PRIYADARSHI DEV

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE G.S.T DEPARTMENT, SECOND CIRCLE, KOTTAYAM 686 001.
- 2 THE COMMISSIONER OF STATE TAXES,
TAX TOWER, KILLIPPALAM, KARAMANA P.O.,
THIRUVANANTHAPURAM 695 002.
- 3 THE STATE OF KERALA
REPRESENTED BY ITS SECRETARY TO TAXES,
SECRETARIAT, THIRUVANANTHAPURAM 695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.18800 OF 2019(Y)

PETITIONER:

ABDUL WAHAB
AGED 69 YEARS
PROPRIETOR, COCHIN MARINE SUPPLIERS, 24/1559,
AGHIL BUILDING, INDIRA GANDHI ROAD,
WILLINGTON ISLAND, KOCHI - 682 003.

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER

Baiju A.A vs State Tax Officer on 6 December, 2019
2ND CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
TAX COMPLEX, MATTANCHERRY, KOCHI - 682 002.

2 STATE OF KERALA
SECRETARY TO GOVERNMENT, TAXES DEPARTMENT,
GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM, PIN - 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.19777 OF 2019(V)

PETITIONER:

M/S.HINDALCO INDUSTRIES LIMITED
ALUPURAM P. O., KALAMASSERY - 682104.
REPRESENTED BY ITS AUTHORIZED SIGNATORY,
MR. S. ANANTHA VISWANATHAN

BY ADVS.
SRI.A.KUMAR
SRI.P.J.ANILKUMAR
SMTG.MINI(1748)
SRI.P.S.SREE PRASAD
SHRI.ABRAHAM JOB
SRI.AJAY V.ANAND

RESPONDENTS:

1 STATE OF KERALA
REPRESENTED BY ITS SECRETARY (TAXES), GOVERNMENT
SECRETARIAT, THIRUVANANTHAPURAM - 695 001.

2 ASSISTANT COMMISSIONER (ASSESSMENT)
SGST DEPARTMENT, SPECIAL CIRCLE - III, ERNAKULAM -
682015.

R2 BY ADV. SMT.T.C.SOWMIAVATHY
BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON

04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.19794 OF 2019(Y)

PETITIONER:

TEEKAY TILES AND GRANITES
DOOR NO.PP VII/2017 CDEF, ENGAPUZHA SOUTH, PUDUPADI -
673586, REPRESENTED BY ITS PARTNER RASAL AKBAR A. K.

BY ADVS.
SRI.K.S.HARIHARAN NAIR
SRI.T.G.MADHAVANUNNI
SRI.C.S.ARUN SHANKAR

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER
SPECIAL CIRCLE - 2, GOODS AND SERVICES TAX DEPARTMENT,
SALES TAX COMPLEX BUILDING, 5TH FLOOR, JAWAHAR NAGAR
COLONY, ERANHIPALAM P. O., KOZHIKODE - 673006.
- 2 THE SALES TAX OFFICER (RECOVERY)
OFFICE OF THE DEPUTY COMMISSIONER, COMMERCIAL TAXES
DEPARTMENT, KOZHIKODE - 673006.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.20151 OF 2019(T)

PETITIONER:

XAVIER T.D
AGED 52 YEARS
S/O DEVASIA, PROPRIETOR, XAVIER TRADERS, BIG BAZAR,
KOZHIKODE, CALICUT - 673 001

BY ADVS.
SRI.K.M.FIROZ
SMT.M.SHAJNA

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
SPECIAL CIRCLE - 1, SGST DEPARTMENT, KOZHIKODE - 673 006
- 2 THE STATE OF KERALA
REPRESENTED BY ITS CHIEF SECRETARY, SECRETARIAT,
THIRUVANANTHAPURAM - 695 001
- 3 SECRETARY
TAXES DEPARTMENT, GOVERNMENT OF KERALA, SECRETARIAT,
THIRUVANANTHAPURAM - 695 001
- 4 THE STATE TAX OFFICER
OFFICE OF THE DEPUTY COMMISSIONER, COMMERCIAL TAXES
DEPARTMENT, KOZHIKODE

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.20208 OF 2019(A)

PETITIONER:

ASOK AYYAPPAN
AGED 44 YEARS
PROPRIETOR, M/S. B.S. ENGINEERING, BALASUBRAMANIAN LANE,
PATTOM, THIRUVANANTHAPURAM-695004.

BY ADVS.
SRI.P.S.SOMAN

SMT.T.RADHAMANY
SRI.V.SATHEESH (S-3495)
SRI.K.SUNDAR

RESPONDENTS:

- 1 STATE TAX OFFICER(WORKS CONTRACT)
SGST DEPARTMENT, TAX TOWER, KARAMANA P.O,
THIRUVANANTHAPURAM-695 002.
- 2 THE STATE OF KERALA,
REPRESENTED BY THE SECRETARY, TAXES DEPARTMENT, GOVT.
SECRETARIAT, THIRUVANANTHAPURAM-695 001.
- 3 THE COMMISSIONER OF STATE TAX,
SGST DEPARTMENT, GOVERNMENT OF KERALA, TAX TOWER,
KARAMANA P.O, THIRUVANANTHAPURAM-695 002.
- 4 DEPUTY TAHSILDAR (RR),
TALUK OFFICE, FORT P.O, THIRUVANANTHAPURAM-695 023

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.20515 OF 2019(L)

PETITIONER:

M/S.UNITED BUILDERS
NO.34/1695-B7, NATIONAL RESIDENCY, SHOPPING COMPLEX,
EDAPPALLI, KOCHI, PIN-682 024, REPRESENTED BY ITS
PARTNER SOJAN XAVIER.

BY ADV. SMT.M.K.HAJARA

RESPONDENTS:

- 1 COMMERCIAL TAX OFFICER (WC)
OFFICE OF THE DEPUTY COMMISSIONER STATE G.S.T.
DEPARTMENT, ERNAKULAM-682 616.
- 2 THE COMMISSIONER OF STATE TAXES

Baiju A.A vs State Tax Officer on 6 December, 2019
TAX TOWER, KILLIPPALAM, KARAMANA P.O. ,
THIRUVANANTHAPURAM-695 002.

3 THE STATE OF KERALA
REPRESENTED BY ITS SECRETARY TO TAXES, SECRETARIAT,
THIRUVANANTHAPURAM-695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:
IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.21244 OF 2019(E)

PETITIONER:

KERALA STATE CIVIL SUPPLIES CORPORATION LTD.,
(SUPPLYCO DISTRICT DEPOT), PADIPURAYKKAL BUILDING, GOODS
SHED ROAD, NAGAMPADOM, KOTTAYAM, REPRESENTED BY ITS
DEPOT MANAGER SRI SAJI K. KURIAN, CANTACT -
9526413390/6282410426.

BY ADVS.
SRI.AJI V.DEV
SMT.O.A.NURIYA
SRI.ALAN PRIYADARSHI DEV

RESPONDENTS:

- 1 THE STATE TAX OFFICER,
STATE G.S.T.DEPARTMENT, FIRST CIRCLE, TAX COMPLEX,
KOTTAYAM - 686001.
- 2 THE COMMISSIONER OF STATE TAXES
TAX TOWER, KILLIPPALAM, KARAMANA P. O. ,
THIRUVANANTHAPURAM - 695002.
- 3 THE STATE OF KERALA
REPRESENTED BY IT'S SECRETARY TO TAXES, SECRETARIAT,
THIRUVANANTHAPURAM - 695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON

04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.21452 OF 2019(F)

PETITIONER:

M/S.PUNARTHAM AGENCIES
KP V/530, PUNARTHAM, PALUKONAM, KUDAPPANAKUNNU,
THIRUVANANTHAPURAM, REPRESENTED BY ITS PROPRIETRIX,
ANANTHY.K.,D/O.RAMACHANDRAN NAIR, AGED 38 YEARS.

BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBHA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE STATE TAX OFFICER,
FIRST CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695002.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM-695002.
- 3 STATE OF KERALA,
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.21453 OF 2019(F)

PETITIONER:

JAGDISH KUMAR BURDAK,
AGED 46 YEARS
PROPRIETOR GRANITE CENTRE, OPP. ROCK ROSE TOURIST HOME,
N.H.BYEPSS, VENNALA P.O.KOCHI-682 028.

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
SPECIAL CIRCLE 111, STATE GOODS AND SERVICE TAX
DEPARTMENT, THEVARA, ERNAKULAM, KOCHI-682 015.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM,PIN-695 001.

R1-2 BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.21543 OF 2019(P)

PETITIONER:

M/S.TRIVENI SCHOOL BAZAR
PM TAJ ROAD, SM STREET, KOZHIKODE, REPRESENTED BY ITS
MANAGING PARTNER.

BY ADV. SRI.JOSEPH SEBASTIAN PURAYIDAM

RESPONDENTS:

- 1 STATE OF KERALA
REPRESENTED BY CHIEF SECRETARY, GOVERNMENT SECRETARIAT,

THIRUVANANTHAPURAM - 695 001.

- 2 THE COMMISSIONER OF STATE TAX
STATE GST DEPARTMENT , TAX TOWER, KILLIPPALAM, KARAMANA.
P.O., THIRUVANANTHAPURAM - 695 002.
- 3 ASSISTANT COMMISSIONER OF STATE TAX
SPECIAL CIRCLE, STATE GST DEPARTMENT, SALES TAX COMPLEX
BUILDING, JAWAHAR NAGAR COLONY, ERANHIPALAM P.O.,
KOZHIKODE - 673 006.
- 4 STATE TAX OFFICER
2ND CIRCLE, OFFICE OF THE STATE TAX OFFICER, SGST
DEPARTMENT, SALES TAX COMPLEX BUILDING, JAWAHAR NAGAR
COLONY, ERANHIPALAM P.O., KOZHIKODE - 673 006.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.22104 OF 2019(K)

PETITIONER:

M/S.BANNARI AMMAN STEELS (P) LTD
NATTUKKAL, CHITTUR, PALAKKAD, REPRESENTED BY ITS
MANAGING DIRECTOR, SRI. R.ELANGOVAN

BY ADVS.
SRI.N.MURALEEDHARAN NAIR
SRI.S.JAFFERALI

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER OF STATE TAX
STATE GOODS SERVICE TAX DEPARTMENT KERALA, SPECIAL
CIRCLE, PALAKKAD-678 001.
- 2 STATE OF KERALA
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695 002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.23309 OF 2019(K)

PETITIONER:

SASIKUMAR M, PROPRIETOR
AGED 54 YEARS
GEETHANJALI AUTOMOBILES,
CHERPULASSERY, PALAKKAD.

BY ADVS.
SRI.N.MURALEEDHARAN NAIR
SRI.ANTONY JONES

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICE TAX DEPARTMENT,
OTTAPALAM, PALAKKAD-679104.
- 2 STATE OF KERALA,
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT,
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.23313 OF 2019(L)

PETITIONERS:

SASIKUMAR M
AGED 54 YEARS
PROPRIETOR, GEETHANJALI AUTOMOBILES, CHERPULASSERY,
PALAKKAD.

BY ADVS.
SRI.N.MURALEEDHARAN NAIR
SRI.ANTONY JONES

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICE TAX DEPARTMENT, OTTAPALAM,
PALAKKAD-679104.
- 2 STATE OF KERALA,
REPRESENTED BY THE SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.23616 OF 2019(B)

PETITIONER:

CHANDRA BABU G.
AGED 35 YEARS
T.C. 9/570, SREEDHANYA C-4, JAWAHAR NAGAR,
THIRUVANANTHAPURAM.

BY ADVS.
SRI.K.P.ABDUL AZEES
SMT.SHOBA ANNAMMA EAPEN
SMT.T.ARCHANA

RESPONDENTS:

- 1 THE ASSISTANT COMMISSIONER OF STATE TAX,
WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695002.
- 2 THE COMMISSIONER,
STATE GOODS AND SERVICE TAX DEPARTMENT,
THIRUVANANTHAPURAM -695 002.
- 3 STATE OF KERALA
REPRESENTED BY SECRETARY (TAXES), SECRETARIAT,
THIRUVANANTHAPURAM 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.23859 OF 2019(F)

PETITIONER:

PANASONIC APPLIANCES INDIA CO.LTD.
SAHARA COMPLEX, 4/3533, OLD RAILWAY STATION ROAD,
ERNAKULAM, KOCHI - 682 018 (REPRESENTED BY SRI. ANIL
KUMAR.G, DEPUTY MANAGER-ACCOUNTS)

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
SPECIAL CIRCLE-II, STATE GOODS AND SERVICES TAX
DEPARTMENT, THEVARA, ERNAKULAM, KOCHI - 682 015
- 2 STATE OF KERALA
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN - 695 001

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.24395 OF 2019(Y)

PETITIONER:

JAQUAR AND COMPANY PVT.LTD
NO.35/563,OPP.INTERNATIONAL STADIUM,
PALARIVATTOM,KOCHI-682025.(REPRESENTED BY
SRI.SATHYAPAL.K.R.AUTHORIZED SIGNATORY).

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 ASSISTANT COMMISSIONER
SPECIAL CIRCLE-III,STATE GOODS AND SERVICE TAX
DEPARTMENT,THEVARA,
ERNAKULAM,KOCHI-682015.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT,TAXES DEPARTMENT,
GOVERNMENT SECRETARIAT,
THIRUVANANTHAPURAM,PIN-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.24727 OF 2019(M)

PETITIONER:

HOPE CONSTRUCTIONS,
KADAMATTOM P.O., KOLENCHERRY, ERNAKULAM- 682311,
REPRESENTED BY IT'S MANAGING PARTNER SRI.PAUL RAJAN.

BY ADVS.
SRI.AJI V.DEV
SRI.M.G.SHAJI
SMT.O.A.NURIYA
SRI.ALAN PRIYADARSHI DEV

RESPONDENTS:

- 1 THE STATE TAX OFFICER,
WORKS CONTRACT, S.G.S.T DEPARTMENT, TAX TOWER, BAZAR
ROAD, MATTANCHERRY- 682002.
- 2 THE COMMISSIONER OF STATE TAXES,
TAX TOWER, KILLIPPALAM, KARAMANA P.O.,
THIRUVANANTHAPURAM- 695002.
- 3 THE STATE OF KERALA,
REPRESENTED BY IT'S SECRETARY TO TAXES, SECRETARIAT,
THIRUVANANTHAPURAM- 695002.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.27742 OF 2019(P)

PETITIONER:

P. AJITHKUMAR
AGED 42 YEARS
PROPRIETOR, M/S.PARAPARAMBIL MOTORS, THOTTAMON, RANNI,
PATHANAMTHITTA-689672

BY ADVS.
SRI.P.S.SOMAN
SMT.T.RADHAMANY

RESPONDENTS:

- 1 AGRICULTURAL INCOME TAX AND STATE TAX OFFICER
STATE GOOD AND SERVICE TAX DEPARTMENT, RANNI,
PATHANAMTHITTA-689672
- 2 THE STATE OF KERALA
REPRESENTED BY THE SECRETARY, TAXES DEPARTMENT, GOVT
SECRETARIAT, THIRUVANANTHAPURAM-695001
- 3 THE COMMISSIONER OF STATE TAX
STATE GOOD AND SERVICE TAX DEPARTMENT, TAX TOWER,
KARAMANA.P.O, THIRUVANANTHAPURAM-695002
- 4 DEPUTY TAHSILDAR(RR)
TALUK OFFICE, RANNI, PATHANAMTHITTA-689672

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.27872 OF 2019(H)

PETITIONER:

COCHIN DRUGS AND PARENTERALS,
9/160D, MATTAKUZHAY-CHEMMANAD ROAD, MATTAKKUZHI,
VARIKKOLI P.O, PIN-682308, ERNAKULAM DISTRICT,
(REPRESENTED BY SMT. P.D. BINDU, AUTHORIZED SIGNATORY)

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER,
2ND CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT,
TRIPUNITHURA-682 301
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695 001
- 3 ASSISTANT COMMISSIONER OF STATE TAX,
STATE GOODS AND SERVICES TAX DEPARTMENT, 2ND FLOOR,
CIVIL STATION, KAKKANAD, KOCHI-682 030
- 4 BRANCH MANAGER,
THE FEDERAL BANK LTD, VYTTILA, KOCHI-682 019,
ERNAKULAM DISTRICT.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.28775 OF 2019(V)

PETITIONER:

M/S. GREEN BAND FOODS INDIA PRIVATE LIMITED,
39A, CSEZ, KAKKANAD, ERNAKULAM, REPRESENTED BY ITS
MANAGING DIRECTOR, XAVIER MOOLAYIL, AGED 67 YEARS,
S/O.CHACKO JOSEPH.

BY ADVS.
SRI.HARISANKAR V. MENON
SMT.MEERA V.MENON

RESPONDENTS:

- 1 STATE TAX OFFICER,
SGST DEPARTMENT, 2ND CIRCLE,KALAMASSERY AT KAKKANAD,

2 STATE ASSISTANT COMMISSIONER,
SGST DEPARTMENT, ERNAKULAM -682 030.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.30131 OF 2019(N)

PETITIONERS:

1 P.K.SALIM
AGED 50 YEARS
S/O. LATE KOCHUMHAMMED, RESIDING AT PAZHANGATTU HOUSE,
THENGOD P.O., KAKKANAD, KOCHI-682 030, REPRESENTED BY
ITS PARTNER OF M/S. CHAKKIES MEDICALS, KAKKANAD, KOCHI-
30

2 P.K.ALI,
AGED 53 YEARS
S/O. LATE KOCHUMHAMMED, RESIDING AT PAZHANGATTU HOUSE,
THENGOD P.O., KAKKANAD, KOCHI-682 030, REPRESENTED BY
ITS PARTNER OF M/S. CHAKKIES MEDICALS, KAKKANAD, KOCHI-
30

BY ADV. SMT.M.A.JINSA MOL

RESPONDENTS:

1 STATE OF KERALA
REPRESENTED BY ITS SECRETARY TO TAXES, DEPARTMENT OF
GOODS AND SERVICE, SECRETARIAT, THIRUVANANTHAPURAM, PIN-
695 002

2 THE STATE TAX OFFICER,
STATE GOODS AND SERVICE TAX DEPARTMENT, IIND CIRCLE,
KALAMASSERY, CIVIL STATION, KAKKANAD, ERNAKULAM, PIN-682
030

3 THE DEPUTY THAHSILDAR,
AUTHORISED OFFICER, KANAYANNUR TALUK,
ERNAKULAM DISTRICT-682 018

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.30256 OF 2019(F)

PETITIONER:

SHEELA MOHANDAS
AGED 57 YEARS
PROPRIETRESS, MOHAN'S HOME SHOPPE, THIRUVAMPADY,
ALAPPUZHA, PIN-688009.

BY ADVS.
SRI.K.N.SREEKUMARAN
SRI.P.J.ANILKUMAR (A-1768)
SRI.N.SANTHOSHKUMAR

RESPONDENTS:

- 1 STATE TAX OFFICER,
1ST CIRCLE, STATE GOODS AND SERVICES TAX DEPARTMENT,
CIVIL STATION, ALAPPUZHA-688001.
- 2 STATE OF KERALA,
REPRESENTED BY SECRETARY TO GOVERNMENT, TAXES
DEPARTMENT, GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM,
PIN-695001.
- 3 INSPECTING ASSISTANT COMMISSIONER,
STATE GOODS AND SERVICES TAX DEPARTMENT, ALAPPUZHA-
688001.
- 4 THE BRANCH MANAGER,
STATE BANK OF INDIA, ALAPPUZHA TOWN BRANCH, IRON BRIDGE
P.O., ALAPPUZHA-688011.

R4 BY ADV. SRI.K.K.CHANDRAN PILLAI (SR.)
R4 BY SMT.AMBILY S., SC, SBI
BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.31560 OF 2019(T)

PETITIONER:

SIDHIK M.A
AGED 50 YEARS
PROPRIETOR, M/S. MALABAR TILES AND BUILDING MATERIALS,
KAZHANI, CHUNGAM, KAVASSERY, ALATHUR.

BY ADVS.
SMT.S.K.DEVI
SRI.SANTHOSH P.ABRAHAM

RESPONDENTS:

- 1 THE STATE TAX OFFICER
STATE GOODS AND SERVICES TAX DEPARTMENT,
ALATHUR, PALAKKAD-678541.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS AND SERVICE TAX DEPT.,
COMMERCIAL TAX COMPLEX, PALAKKAD-678001.
- 3 THE ASST. COMMISSIONER OF STATE TAX,
KERALA STATE GOODS AND SERVICE TAX DEPT.,
CHITTUR-678101.
- 4 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY,
SECRETARIAT, THIRUVANANTHAPURAM-695001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).9963/2019 AND CONNECTED CASES, THE COURT
ON 06.12.2019 DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE A.K.JAYASANKARAN NAMBIAR

FRIDAY, THE 06TH DAY OF DECEMBER 2019 / 15TH AGRAHAYANA, 1941

WP(C).No.32439 OF 2019(D)

PETITIONER:

M/S.OPAC ENGINEERING PVT. LTD.,
10/352B, SREESHYLA, ARAKUNNAM P.O., ERNAKULAM,
REPRESENTED BY ITS MANAGING DIRECTOR, DILEEP KUMAR P.V.

BY ADVS.
SMT.S.K.DEVI
SRI.M.RAJ MOHAN
SRI.SHANMUGHAM D. JAYAN
SMT.P.K.MAYA DEVI

RESPONDENTS:

- 1 THE STATE TAX OFFICER (WORKS CONTRACT),
O/O THE DEPUTY COMMISSIONER, STATE GOODS AND SERVICES
TAX DEPARTMENT, MATTANCHERRY - 682 002.
- 2 THE DEPUTY COMMISSIONER,
KERALA STATE GOODS AND SERVICE TAX DEPARTMENT,
COMMERCIAL TAX COMPLEX, ERNAKULAM - 682 015.
- 3 STATE OF KERALA,
REPRESENTED BY ITS FINANCE SECRETARY, SECRETARIAT,
THIRUVANANTHAPURAM - 695 001.

BY SPECIAL GOVERNMENT PLEADER SRI.C.E.UNNIKRISHNAN

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON
04.12.2019, ALONG WITH WP(C).NO.9963/2019 AND CONNECTED CASES, THE
COURT ON 06.12.2019 DELIVERED THE FOLLOWING:

W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 83
8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718
10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 1158
11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398,
12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633,
16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 1
17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244,
21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872,
30131, 30256, 31560 & 32439/2019

JUDGMENT

In these writ petitions, the issue that arises for consideration is the legality of the notices and assessment orders issued to the petitioners in connection with the assessment under the Kerala Value Added Tax Act [hereinafter referred to as the 'KVAT Act'] for the assessment years 2010-11 and 2011-12. The notices and orders are impugned, inter alia, on the ground that the authorities concerned did not have the jurisdiction to issue them since the amendments introduced to Section 25 (1) of the KVAT Act, through the Kerala Finance Acts of 2017 and 2018, notified through gazette notifications dated 19.06.2017 and 31.03.2018 respectively, did not contemplate a retrospective operation of the amended provisions.

2. Before framing the issues that arise for adjudication in these writ petitions, it would be apposite to refer to the legislative W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 103 ::

exercises that were undertaken in respect of Section 25 (1) of the KVAT Act during the period between 2016 and 2018. Section 25 (1) as it stood immediately prior to its amendment with effect from 01.04.2017 read as follows:

"25. Assessment of escaped turnover:- (1) Where for any reason the whole or any part of the turnover of business of a dealer has escaped assessment to tax in any year or return period or has been under-assessed or has been assessed at a rate lower than the rate at which it is assessable or any deduction has been wrongly made therefrom, or where any input tax or special rebate credit has been wrongly availed of, the assessing authority may, at any time within five years from the last date of the year to which the return relates, proceed to determine, to the best of its judgment, the turnover which has escaped assessment to tax or has been underassessed or has been assessed at a rate lower than the rate at which it is assessable or the deduction in respect of which has been wrongly made or input tax or special rebate credit that has been wrongly availed of and assess the tax payable on such turn over or disallow the input tax or special rebate credit wrongly availed of, after issuing a notice on the dealer and after making such enquiry as it may consider necessary:

Provided that before making an assessment under this sub- section the dealer shall be given a reasonable opportunity of being heard.

Provided further that where the escapement is due to the application of incorrect rate of tax, no assessment under this sub-section shall be made where the dealer files revised return and pays the tax which has escaped assessment along with interest under sub-section (5) of section 31 and thrice the interest as settlement fee.

Provided also that the period for the completion of assessments including those subjected to extension under section 25B which expired on 31st March, 2015, shall be extended up to 31 st W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 104 ::

March, 2016."

3. The provision was amended through the Kerala Finance Act, 2017 with effect from 01.04.2017 when the period of limitation under Section 25 (1) for proceeding to determine the escaped turnover was changed from "five years" to "six years from the end of the year to which the assessment relates" and the third proviso thereto was amended to read as follows:

"Provided also that the period for proceeding to determine any assessment including those subjected to extension under section 25B which expires on 31st March, 2017, shall be extended up to 31st March, 2018."

4. The third proviso to Section 25 (1) was once again amended through the Kerala Finance Act, 2018, with effect from 01.04.2018 to read as follows.

"Provided also that the period for proceeding to determine any assessment including those subjected to extension under section 25B which expires on 31st March, 2017, shall be extended up to 31st March, 2019."

5. It is relevant to note, at this juncture, that on 8 th W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633,

15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 105 ::

September, 2016, the Constitution (One Hundred and First Amendment) Act, 2016 (hereinafter referred to as 'CAA' for brevity) received the assent of the President and the erstwhile regime of levy of taxes on Sale or Purchase of goods, gave way to a new regime for levy of taxes on the supply of Goods and Services. Through the amendment, taxing powers were conferred on the Union as well as the States and the Union Territories with legislatures, to make laws for levying Goods and Services Tax (GST) on every transaction of supply of goods or services or both. In the future, Central and State GST was to be levied on all transactions involving supply of goods and services, except those that were kept out of the purview of GST. Amendments were carried out in Articles 248, 249, 250, 268, 268A, 269, 270, 271, 286, 366 and 368. The sixth and seventh Schedules to the Constitution were also suitably amended. Through the introduction of a new Article 246A, both the Parliament and the State Legislatures were given the powers to make laws with respect to Goods and Services tax imposed by the Union or by the State. The exclusive power to make laws regarding GST, where the supply of goods or services or both took place in W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 106 ::

the course of inter-state trade or commerce, was retained with the Parliament. Sections 14, 17(b) and 19 of the CAA are relevant for the purposes of these writ petitions and are therefore extracted hereunder.

"14. In Article 366 of the Constitution,--

(i) after clause (12), the following clause shall be inserted, namely:--

'(12A) "goods and services tax" means any tax on supply of goods, or services or both except taxes on the supply of the alcoholic liquor for human consumption;';

(ii) after clause (26), the following clauses shall be inserted, namely:--

'(26A) "Services" means anything other than goods; (26B) "State" with reference to articles 246A, 268, 269, 269A and article 279A includes a Union territory with Legislature;

.....

.....

.....

.....

.....

.....

17. In the Seventh Schedule to the Constitution,--

(a)

(b) in List II -- State List,--

(i) entry 52 shall be omitted;

(ii) for entry 54, the following entry shall be substituted, namely:--

W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 107 ::

"54. Taxes on the sale of petroleum crude, high speed diesel, motor spirit (commonly known as petrol), natural gas, aviation turbine fuel and alcoholic liquor for human consumption, but not including sale in the course of inter-State trade or commerce or sale in the course of international trade or commerce of such goods.";

(iii) entry 55 shall be omitted;

(iv) for entry 62, the following entry shall be substituted, namely:--

"62. Taxes on entertainments and amusements to the extent levied and collected by a Panchayat or a Municipality or a Regional Council or a District Council."

.....

.....

19. Notwithstanding anything in this Act, any provision of any law relating to tax on goods or services or on both in force in any State immediately before the commencement of this Act, which is inconsistent with the provisions of the Constitution as amended by this Act shall continue to be in force until amended or repealed by a competent Legislature or other competent authority or until expiration of one year from such commencement, whichever is earlier."

6. On going through the pleadings in the writ petitions and on considering the arguments advanced before me by counsel on either side, I find that the issues that arise for consideration in these writ petitions are as follows:

(a) Whether under the provisions of Section 25 (1) of the W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 108 ::

KVAT Act, as amended by the Kerala Finance Act, 2017, and before the repeal of the KVAT Act on 22.06.2017, the six year period of limitation for re-opening assessments could be relied upon to issue pre-assessment notices in cases where, by 31.03.2017, the five year period for re- opening assessments under the unamended provisions of Section 25 (1) of the KVAT Act had already expired?

(b) If issue (a) is answered in the negative, whether the amendment to the third proviso to Section 25 (1) of the KVAT Act, through the Kerala Finance Act, 2017, would enable the revenue to re-open assessments in cases where, by 31.03.2017, the five year period for re-opening assessments under the un-amended provisions of Section 25 (1) of the KVAT Act had already expired?

(c) Whether, after the CAA, 2016, and the repeal of the KVAT Act pursuant thereto, on 22.06.2017, the State legislature retained any residual power of legislation so as to amend the provisions of

Section 25 (1) of the KVAT Act through the Kerala Finance Act, 2018?

(d) Whether the amendment to the provisions of Section 25 (1) of the KVAT Act, through the Kerala Finance Act, 2018, and the pre-assessment notices and assessment orders issued consequent thereto, could be justified by relying on the savings clause under Section 174 of the SGST Act?

W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 109 ::

7. For the sake of convenience, issues (a) and (b) are taken together for consideration first and issues (c) and (d) taken together thereafter. The arguments advanced before me by counsel on either side have also followed the said pattern.

Re: Issues (a) and (b):

It is the contention of learned counsel for the writ petitioners that, when under the provisions of Section 25 (1) of the KVAT Act, as it stood prior to its amendment with effect from 01.04.2017, the limitation period for re-opening an assessment under the Act was five years from the end of the relevant assessment year, and no notices had been served on the assessee within the said period, the subsequent amendment that increased the period of limitation to six years would not confer a jurisdiction on the assessing authorities to re-open an assessment that had become final by 31.03.2017. It is pointed out, with reference to the decisions in *Garikapati Veeraya v. N.Subbiah Choudhry* - [AIR 1957 SC 540], *S.S. Gadgil v. Lal & Co.* - [AIR 1965 SC 171], *I.T.O., Ahmedabad v. Devshankar Bhatt* - [AIR 1969 SC 778], *State W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 110 ::*

of *Punjab and Others v. M/s.Shreyans Indus Ltd., etc.* - [AIR 2016 SC 1185] and *Commercial Tax Officer, Anchal and Others v. S. Najeem and Another* - [2018 (4) KHC 666 (DB)], that an amendment in a taxing statute cannot be viewed as

retrospective in its operation so as to revive assessments that had already attained finality prior to the date of amendment.

8. Alternatively, it is contended that even if the amendment to the main provision of Section 25 (1) of the KVAT Act can be seen as empowering the assessing authorities to re-open assessments for the assessment years up to six years prior to 01.04.2017, the third proviso cannot have the effect of empowering the authorities to re-open assessments beyond six years prior to 01.04.2017. This is because a proviso cannot expand the ambit of the main provision and must necessarily be subservient to it. Reliance is placed on the decisions in *Gajraj Singh etc. v. The State Transport Appellate Tribunal and Others etc.* - [AIR 1997 SC 412], M/s.

Gurcharan Singh Baldev Singh v. Yashwant Singh and Others

- [AIR 1992 SC 180], *Isha Valiamohamad and another v. Haji W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 111 ::*

Gulam Mohamad & Haji Dada Trust - [AIR 1974 SC 2061] and J.K. Synthetics Limited v. Commercial Taxes Officer - [(1994) 4 SCC 276] to support the said contention.

9. Per Contra, it is the submission of Sri. C.E Unnikrishnan, learned Special Government Pleader, that the amendment brought in with effect from 01.04.2017, conferred on the assessing authorities the power to re-open assessments for assessment years up to six years prior to 01.04.2017. He relies upon the judgment of a Constitution Bench of the Supreme Court in *S.C. Prashar and another v. Vasantsen Dwarkadas and others* - [AIR 1963 SC 1356] to fortify his submission. He also places reliance on the decisions of this Court in *Binu Gopinath v. State of Kerala* -

[2018 (2) KLT 991] and *Paul Varghese v. State of Kerala* -

[(2005) 13 KTR 29 (Ker)] to suggest that the amendments brought about through the Kerala Finance Act, 2017 are retrospective in their operation. As regards the amendment effected to the third proviso to Section 25 (1) of the KVAT Act with effect from 01.04.2017, it is his contention that the amendment W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094,

16162,16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 112 ::

brought in significant changes to the wording of the proviso in that, while earlier the phraseology used mandated that assessments already re-opened had to be completed within a particular period, the amendment had the effect of empowering authorities to re-open assessments within the extended period mentioned in the proviso. He points out that this is particularly so in relation to the assessment year 2010-11, where the six year period under Section 25 (1) would expire by 31.03.2017 but now, on account of the amended third proviso, the assessment for 2010-11 could be re-

opened before 31.03.2018. It is his contention that the amendments under the Act have to be seen as retrospective by implication as the sole purpose of the amendment was to recover such tax as had not been assessed in the years prior to the changeover to the GST regime.

10. I have considered the rival submissions on the above issues. It is now well settled that on the expiry of the period of limitation prescribed under a fiscal statute for re-opening an assessment, the assessee gets a valuable right in the form of W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162,16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 113 ::

immunity from assessments under the Act. The said vested right/immunity cannot be taken away through any power of extension of the period of limitation, exercised after the expiry of the said period, by any authority in whom such power to extend is conferred by the statute. The power to extend a period of limitation must be exercised before the expiry of the normal period, as has been held in *Shreyans* case (Supra).

11. The question then arises as to whether a legislative amendment can confer such a power on a statutory authority to take away a right/immunity that has accrued to an assessee? The answer to that question is in the affirmative. It is well settled that the legislature can, through a retrospective amendment of the statutory provisions, take away such vested rights that have accrued to assesseees. But, was there such a retrospective amendment in the instant cases? As already noticed, the amendment in question was expressly made effective only from 01.04.2017. The period for re-opening assessments under Section 25 (1) of the Act was enlarged from five years to six years only with W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776,

11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 114 ::

effect from 01.04.2017. The provisions of Section 25 (1), save the third proviso thereto, have therefore to be construed as having only a prospective operation.

12. As regards the third proviso to Section 25 (1), which too was amended with effect from the same date, to state that "the period for proceeding to determine any assessment which expires on 31.03.2017 shall be extended up to 31.03.2018, the position is slightly different. A Division Bench of this Court in Commercial Tax Officer, Anchal and Others v. S. Najeem and Another -

[2018 (4) KHC 666 (DB)], while rejecting the argument of the Government pleader who sought to justify a re-opening of assessments based on the amended provisions of Section 25 (1) of the KVAT Act, with effect from 01.04.2017, observed as follows at paras 14 and 32;

"14. The learned Special Government Pleader (Taxes) lastly argued that there was an amendment by substitution to Section 25(1) by which the period for proceeding to determine was made 6 years. When a substitution is made as distinguished from addition, deletion or insertion then, the substituted provision would relate back to the date of the enactment unless otherwise specified. Strong reliance was W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 115 ::

placed on AIR 2014 Karnataka 120 (Full Bench) [Hassan Co- operative Milk Producers Societies Union Limited v. State W.A.No.230 of 2017 & - 18 - connected cases of Karnataka] to urge the position. At least the notices issued within the six year period has to be sustained argues the Special G.P. In Hassan Co-operative Union the Full bench considered the issue of a substitution made, changing the term of an elected committee of a cooperative society from "five co-operative years" to "five years from the date of election". The State sought to appoint an Administrator as per the pre-amended provision deeming the term of the committees elected prior to the substitution, as having expired at the end of the cooperative year. The Full Bench was

considering the issue as referred by a Division Bench (D.B) doubting the decision of another D.B in Shankarappa Mallappa Kelagiri Vs. The Co- operative Election Commissioner.

32. Having gone through the gamut of decisions placed before us, both by the State and the respondent-

assesseees, from which we have copiously referred to, we find the State's contention to be supported only by the judgment of the Full Bench of the Karnataka High Court, which we have dissented from. We have demonstrated from the various decisions of the Hon'ble Supreme Court placed before us by both the parties that there is no irrefutable rule that an amendment by substitution is invariably retrospective. We find the amendment by substitution in the present case, extending the period W.A.No.230 of 2017 & - 43 - connected cases of limitation from 5 years to 6 years to be not applicable to those assessments which stood completed and the 5 year period for re-opening of assessment under Section 25(1) stood expired. We do not see any reason to interfere with the impugned judgments on the basis of the amendment made subsequent to the judgment. Though the legislature had the competence to extend the period of limitation with retrospective effect, the same was not done. We cannot but observe that even if such an exercise was carried out, necessarily there should have been a validation clause so as to get over the judgment of the writ Court. *Rai Ramakrishna, Meerut Development Authority, M/s Arooran Sugars Limited*, W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 116 ::

and *Indian Aluminium Co.* are cases in which the legislature despite the judgment of a constitutional court; brought in amendments removing the defect pointed out in the judgments, and also provided a validation clause by which the action taken under the defective provision stood validated under the retrospective amendment made. This exercise is totally absent in the amendment made to section 25 (1), substituting the period of limitation from five to six years."

13. Thereafter, however, the court referred to the decision in *Binu Gopinath* - [2018 (3) KHC 482] to observe as follows with respect to the amended provisions of the 3rd proviso to Section 25 (1) of the KVAT Act;

"33. *Binu Gopinath v. State of Kerala* [2018 (3) KHC 482] was also relied on by the learned Special Government Pleader. The W.A.No.230 of 2017 & - 44 - connected cases provision which was considered therein was distinct from that considered here. Finance Act, 2017, as we noticed, substituted the provision under sub-section (1) of

Section 25 and provided six years from the last date of the assessment year, as the period of limitation for proceeding to determine the tax payable. The assessment which came up for consideration before the learned Single Judge was of the year 2011-12. As per the earlier provision and the limitation provided of five years, the period stood expired on 31.03.2017, after which the amendment by substitution was brought into the statute book. We have already held that substitution as such would not have any retrospective effect. The learned Single Judge had also not declared the assessment to be retrospective merely for reason of a substitution having been made. There was a proviso in the substituted sub-section extending upto 31.03.2017, the period for proceeding for any assessment which expires on 31.03.2017. Hence, the proviso by necessary intendment granted retrospective effect to the six year W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 117 ::

period at least for the assessment year 2011-12. The decision has absolutely no application on the facts emanating from the appeals before us."

14. The suggestion that the amendments effected to the third proviso to Section 25 (1) of the KVAT Act, through the Kerala Finance Act, 2017, would enable the revenue authorities to re-open assessments, even in those cases where the erstwhile period of limitation of five years had expired as on 31.03.2017, finds support in another Division Bench decision of this Court in Paul Varghese v. State of Kerala - [(2005) 13 KTR 29 (Ker)], where, while interpreting a similar proviso under the erstwhile Kerala General Sales Tax Act, that sought to extend the period for completion of assessments through an amendment that was brought in after expiry of the period for completion of assessments under the unamended Act, the court relied on the decisions of the Supreme Court in Commercial Tax Officer v. M/s.Biswanath Jhunjhunwala - [AIR 1997 SC 357] and Additional Commissioner (Legal) v. Jyothi Traders - [1999 (112) STC 277] to hold as follows:

W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616,

23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 118
::

"11. As we already noted, the second proviso to Sec. 17(6) added by the amending Act is specifically intended to cover the assessment year 1994-95. When the legislature has specifically made a provision regarding the period of limitation for completion of the assessment for 1994-95, in the absence of a challenge to the said provision it has to be given its full effect. Even in a case where the statute was amended by inserting a proviso enlarging the period of limitation for completion of assessment/re assessment after the expiry of the period for completion of the assessment, the Supreme Court has held that the intention of the legislature should be given its full effect. The second proviso as already noted, clearly expresses the intention of the legislature in giving retrospective operation in respect of the assessment year 1994-95. Here it must be noted that even in the decision of the Supreme Court in Gadgil's case relied on by the assessee it was observed that "the provision must be read subject to the rule that in the absence of an express provision or clear implication, the Legislature does not intend to attribute to the amending provision a greater retrospectivity than is expressly mentioned". Hence all the decisions of the Supreme Court are to the effect that it is the legislative intention that must be given full effect. Hence in view of the authoritative pronouncements of the Supreme Court discussed above, the contention of the petitioner that the assessment is barred by limitation has no substance. It is accordingly rejected."

15. In the instant cases, it can be seen that the purpose of the amendment to the third proviso to Section 25 (1) of the KVAT Act was only to extend the time for re-opening those assessments where the period of limitation for re-opening under the unamended provisions was to expire by 31.03.2017. The object of the W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 119 ::

amendment was to permit a re-opening of such cases till 31.03.2018. The amendment has to be viewed in the backdrop of the introduction of the new regime of GST in the State with effect from 22.06.2017, on which date the KVAT Act was repealed by the State legislature. In my view, the circumstances under which the amendment was carried out clearly bring out the intention of the legislature to permit a re-opening of past assessments under the KVAT Act up to 31.03.2018 and it is this intention that must be read into the third proviso to Section 25 (1), as amended with effect from 01.04.2017, so as to give it full effect.

16. Before parting with the issues, I must also address the arguments of learned counsel for the petitioners that, going by the well-settled principles of statutory interpretation, a proviso cannot enlarge the scope of the main provision to which it is appended.

The contention is essentially that, inasmuch as the provisions of Section 25 (1) of the KVAT Act enlarged the period for re-opening assessments from five years to six years only with effect from 01.04.2017, the third proviso could not be seen as permitting a re-

W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 120 ::

opening of past assessments beyond the five-year period of limitation prescribed under the unamended Act. The legal position with regard to the principles that must guide an interpretation of a proviso have been pithily stated in the decision of the Supreme Court in *S.Sundaram Pillai & Ors. v. V.R.Pattabiraman & Ors.* - [(1985) 1 SCC 591] as follows:

"A proviso may serve four different purposes:

1. Qualifying or excepting certain provisions from the main enactment;
2. It may entirely change the very concept of the intendment of the main enactment by insisting on certain mandatory conditions to be fulfilled in order to make the enactment workable;
3. It may be so embedded in the Act itself as to become an integral part of the enactment and thus acquire the tenor and colour of the substantive enactment itself; and
4. It may be used merely to act as an optional addendum to the enactment with the sole object of explaining the real intendment of the statutory provision."

17. In the instant cases, as already noticed above, while the main part of Section 25 (1) clearly indicates that the extended period of six years for re-opening assessments is to operate prospectively with effect from 01.04.2017, the third proviso seeks W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182,

12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 121 ::

to carve out those assessments, where the period of re-opening would have expired by 31.03.2017, for a differential treatment, by stating that in such cases, the re-opening could be carried out before 31.03.2018. To treat the said proviso as having only prospective effect would render meaningless the words used by the legislature in the said proviso and accord to it the same meaning as the main provision. Going by the tests enumerated in Sundaram Pillai (Supra), the third proviso to Section 25 (1), as amended with effect from 01.04.2017, has to be seen as qualifying the ambit of the main enactment with the object of explaining the real intendment of the statutory exercise. I therefore find that issue (a) has to be answered in the negative and in favour of the assessee, and issue (b) in the affirmative, in favour of the revenue and against the assessee.

Re: Issues (c) and (d):

Although detailed arguments have been advanced before me on both these issues, I find that I need confine myself only to a consideration of issue (c) in these cases. This is because issue (d) had come up for consideration before a learned single judge in a W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 122 ::

batch of cases where the validity of Section 174 of the State GST Act had been called in question. Rejecting the contentions of the assessee in those cases, the court in Sheen Golden Jewels (India) Pvt. Ltd. v. State Tax Officer & Ors. - [2019 (27) KTR 119 (Ker)] found that the mere repeal of the KVAT Act with effect from 22.06.2017 did not have the effect of making the KVAT inapplicable in respect of those actions that were expressly saved by the provisions of Section 174 of the State GST Act. The Court found that the State legislature retained its legislative power to enact the savings clause under Section 174 of the State GST Act and that the only difference in the nature of that power was that, while prior to the introduction of GST through the CAA the State Legislatures enjoyed exclusivity in the matter of legislation on the

subject of taxes on sale or purchase of goods, after the CAA, they had simultaneous legislative power, with the Parliament, to legislate in respect of taxes on supply (which included sale) of goods or services or both. The challenge to the notices and orders issued/passed by the revenue authorities was rejected on the finding that the actions of the revenue authorities, in issuing such W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 123 ::

notices and passing such orders, were saved by the provisions of Section 174 of the State GST Act, the validity of which was also upheld.

18. I am given to understand that an intra-court appeal against the aforesaid judgment of the learned Single Judge is pending consideration before a Division Bench of this Court. At any rate, the said judgment, which dealt with actions taken by the revenue authorities before the amendments brought in to the KVAT Act through the Kerala Finance Act, 2018, did not have to consider the issue of legislative competence of the State Legislature to amend the KVAT Act, after the CAA, 2016, and the repeal of the KVAT Act pursuant thereto, on 22.06.2017. It is to a consideration of the said issue that I now turn.

19. As already noticed above, the amendments effected to Section 25 (1) of the KVAT Act, through the Kerala Finance Act 2017, were before the repeal of the KVAT Act with effect from W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 124 ::

22.06.2017. The provision as it stood then, and in particular the third proviso thereto, authorised the re-opening of past assessments till 31.03.2018. The amendment effected through the Kerala Finance Act, 2018, with effect from 01.04.2018, enlarged the period for re-opening past assessments from 31.03.2018 to 31.03.2019. Under ordinary circumstances, and based on my findings above as regards the effect of the amendments brought into the third proviso to Section 25 (1) by the Kerala Finance Act, 2017, the legislative measures should have sufficed to justify a re-

opening of past assessments up to 31.03.2019, notwithstanding that the amendment itself was effective only from 01.04.2018.

However, the intervention of the CAA 2016, and the consequent repeal of the KVAT Act with effect from 22.06.2017, has a bearing on the legality of the 2018 amendment. A distinction does exist between the saving of rights, privileges, immunities and liabilities under a repealed enactment, through a savings clause inserted in the new enactment traceable to the same legislative power, and an amendment brought in to a repealed enactment after the legislative power itself is taken away. While the legislative power W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 125 ::

justifying both actions, prior to the CAA 2016, could have been traced to Article 246 of our Constitution, read with the relevant entry in the VIIth Schedule thereto, the position changed when there was a fundamental shift in the nature of the tax levy and a fresh conferment of legislative power to legislate in respect of the new levy. After the CAA 2016, the State Legislatures stood denuded of their power to legislate in respect of taxes on sale or purchase of goods, that was covered under Entry 54 of List II of the VII th Schedule to the Constitution, and they were instead conferred with legislative powers, to be exercised simultaneously with the Parliament, in respect of taxes on supply of goods or services or both. While the new legislative power could justify the inclusion of a savings clause in the new legislation enacted in respect of the new levy of tax, to save accrued rights, privileges, immunities etc. under the erstwhile enactment, the deletion of Entry 54 of List II automatically denuded the State Legislatures of the power to further legislate on the subject of taxes on sale or purchase of goods, except to the limited extent retained under the Constitution. The power to amend a statute being a facet of the legislative power W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 126 ::

itself, the State legislature could not have exercised a power to amend the KVAT Act, save to the extent permitted, when it did not retain any residual right to further legislate on the subject of taxes on sale or purchase of goods.

20. There is yet another aspect of the matter. It is trite that when a Court judges the Constitutionality of a legislative enactment it should try to sustain the validity of the enactment to the extent possible and it should strike down the law only when it is impossible to sustain it *State of Bihar v. Bihar Distillery* - [JT (1996) 10 SC 854]. At the same time, the Court must proceed to determine the intention of the Parliament, not only from the language used in the statute but also from surrounding circumstances and an understanding of the mischief that was sought to be remedied by the statute. When one applies the said test to the events that took place after the CAA, 2016, it cannot but be noticed that the very purpose of the CAA was to bring about a change in the system of indirect taxation in our country through the introduction of a Goods and Service Tax, and the phasing out of W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 127 ::

the multitude of indirect tax levies, including value added taxes, that were levied and collected by the Centre and the States. Section 19 of the CAA 2016, which is the sunset clause in the said enactment, envisaged the continuation of the erstwhile system of taxation for a period of one year from the date of enactment of the CAA or till such time as the State legislatures amended or repealed their respective VAT legislations, whichever was earlier. When the State legislature repealed the KVAT Act, while simultaneously bringing into force the new State GST Act, with a savings clause of limited operation, it effectively acknowledged the absence of any power to legislate thereafter on the subject of tax on sale or purchase of goods, except in respect of the limited commodities for which the said power was retained under the Constitution. In respect of all other commodities, the legislative power of the State was only in respect of taxes on the supply of goods or services or both, a power that had to be exercised simultaneously with the Parliament and not unilaterally or exclusively. Thus, at the time of repeal of the KVAT Act, and simultaneous enactment of the State GST Act with a savings clause therein, the savings clause operated W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794,

20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 128 ::

only to save rights, privileges, immunities, action taken etc under the erstwhile enactment as it stood at the time of its repeal, which included the amendments brought in through the Kerala Finance Act, 2017. There could not have been any further legislative exercise by the State legislature in relation to the repealed KVAT Act.

21. I therefore find that issue (c) has to be answered in the negative and in favour of the writ petitioners. The amendments to Section 25 of the KVAT Act, through the Kerala Finance Act, 2018 are declared illegal and unconstitutional in as much as they were beyond the legislative competence of the State Legislature.

In the result, these writ petitions are disposed by declaring that,

(i) the assessments in respect of which the period of limitation for re-opening under Section 25 of the KVAT Act was to expire by 31.03.2017 can be re-opened up to 31.03.2018 by virtue of the W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404, 10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 129 ::

amendment to the third proviso to Section 25 (1) vide Kerala Finance Act, 2017.

(ii) the assessments in respect of which the period of limitation for re-opening under Section 25 of the KVAT Act was to expire by 31.03.2018 cannot be re-opened up to 31.03.2019 or thereafter, by relying on the amendments introduced through the Kerala Finance Act, 2018 since the State Legislature did not have the power to amend the KVAT Act after the CAA 2016, and the repeal of the KVAT Act pursuant thereto, on 22.06.2017.

(iii) The legality of the orders/notices impugned in these writ petitions shall stand determined by the declarations in (i) and (ii) above.

Sd/-

A.K.JAYASANKARAN NAMBIAR JUDGE prp/ W.P.(C).Nos.9963/2019, 36953/2018, 1125, 4416, 4417, 4426, 6766, 7323, 7648, 8356, 8594, 8746, 8779, 9700, 10208, 10320, 10337, 10343, 10404,

10420, 10510, 10546, 10718, 10722, 10751, 10820, 11046, 11067, 11206, 11340, 11341, 11346, 11391, 11433, 11466, 11586, 11648, 11653, 11776, 11932, 11973, 12022, 12049, 12056, 12104, 12182, 12260, 12398, 12500, 12630, 12808, 13149, 13444, 13887, 13957, 14071, 14570, 14833, 15037, 15633, 15957, 16001, 16018, 16094, 16162, 16191, 16214, 16277, 16778, 16896, 16907, 17041, 17060, 17629, 17630, 17655, 18768, 18800, 19777, 19794, 20151, 20208, 20515, 21244, 21452, 21453, 21543, 22104, 23309, 23313, 23616, 23859, 24395, 24727, 27742, 27872, 28775, 30131, 30256, 31560 & 32439/2019 :: 130 ::

APPENDIX OF W.P(C).NO.9963/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ANNUAL RETURN FOR 2011-12 FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE NOTICE DATED 16.05.2018 ISSUED BY THE 2ND RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE REPLY DATED 6.6.2018 FILED BEFORE THE 2ND RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE ASSESSMENT ORDER NO.32072073096/2011-12 DATED 8.11.2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P5 TRUE COPY OF THE JUDGMENT DATED 6.3.2019 IN W.P(C).NO.2579/2019 OF THIS HON'BLE COURT.

EXHIBIT P6 TRUE COPY OF THE ORDER DATED 14.2.2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY// P.S. TO JUDGE APPENDIX OF W.P(C).NO.36953/2018 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32111595909/2011-12 DATED 26/06/2018 ISSUED BY STATE TAX OFFICER, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P2 TRUE COPY OF REASSESSMENT ORDER NO.32111595909/2011-12 DATED 19/09/2018 PASSED BY STATE TAX OFFICER, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE. EXHIBIT P3 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018. EXHIBIT P4 TRUE COPY OF REVENUE RECOVERY NOTICE NO.83/18- 19 DR 1030/18-19 A9-5375/18-19 DATED 26/11/2018.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C.NO.1125/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32110954301/11-12 DATED

28/05/2018 ISSUED BY STATE TAX OFFICER, 4TH CIRCLE, STATE GOODS AND
SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P2 TRUE COPY OF REASSESSMENT ORDER NO.32110954301/11-12 DATED
23/06/2018 PASSED BY STATE TAX OFFICER, 4TH CIRCLE, STATE GOODS AND SERVICE TAX
DEPARTMENT, KOZHIKODE.

EXHIBIT P3 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.4416/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF NOTICE DATED 21.1.2019 U/S 25(1)
FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.4417/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF NOTICE DATED 15.1.2019 U/S 25(1)

FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.4426/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF NOTICE DATED 24.12.2018 U/S 25(1)
FOR 2011.12

EXHIBIT P2 PHOTOCOPY OF ASSESSMENT ORDER DATED 31.1.2019
FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.6766/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32030288065/2011-12
DATED 15/01/2019 ISSUED THE ASSISTANT

COMMISSIONER, STATE GOOD AND SERVICE TAX DEPARTMENT, PATHANAMTHITTA
EXHIBIT P2 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018 EXHIBIT P3 TRUE COPY
OF THE INTERIM ORDER IN WP(C) NO.

36953/2018(T) DATED 04/02/2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.7323/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32693600811/2011-12
DATED 29.9.2018.

EXHIBIT P2 TRUE COPY OF THE ORDER NO.32693600811/2011-12
DATED 29.11.2018.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.7648/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE 32090246774/2011-12 DATED

01/02/2019 ISSUED BY ASSISTANT COMMISSIONER, SPECIAL CIRCLE, STATE GOODS AND
SERVICE TAX DEPARTMENT, PALAKKAD.

EXHIBIT P2 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

EXHIBIT P3 TRUE COPY OF INTERIM ORDER IN WP(C) NO.36953/2018(T) DATED
04/02/2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.8356/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF PROPOSAL NOTICE DATED 18/12/2018
U/S 25(1) FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE ASSESSMENT NOTICE UNDER

SECTION 25 ISSUED BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE RELEVANT
EXTRACT OF THE KERALA FINANCE ACT, 2017 EXHIBIT P3 TRUE COPY OF THE RELEVANT
EXTRACT OF THE KERALA FINANCE ACT, 2018.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C) .NO.8746/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32110830944/2011-12

DATED 1.3.2019 ISSUED THE STATE TAX OFFICER, THIRD CIRCLE, STATE GOODS AND
SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P2 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

EXHIBIT P3 TRUE COPY OF THE INTERIM ORDER IN WP(C).NO.36953/2018(T) DATED
4.2.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C) .NO.8779/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32120296255/2011-12

DATED 06/03/2019 ISSUED THE STATE TAX OFFICER, II CIRCLE, STATE GOODS AND
SERVICE TAX DEPARTMENT, KANNUR EXHIBIT P2 TRUE COPY OF THE RELEVANT PAGE OF

FINANCE ACT EXHIBIT P₃ TRUE COPY OF THE INTERIM ORDER IN WP(C).NO.36953/2018 (T) DATED 04/02/2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.9700/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF INTERIM ORDER DT. 14.02.2019 IN W.P.
(C).NO.4416/2019.

EXHIBIT P2 TRUE COPY OF NOTICE DT. 07.03.2019 U/S.25 FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10208/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 8.6.2018 ISSUED
BY THE 1ST RESPONDENT

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 25.2.2019 ISSUED
BY THE 2ND RESPONDENT

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER

NO.32072070104/2011-12 DATED 28.02.2019 ISSUED BY THE 1ST RESPONDENT EXHIBIT P₄ TRUE COPY OF THE ORDER DATED 14.2.2019 IN WP(C)NO.4417/2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10320/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF NOTICE ISSUED BY THE 1ST RESPONDENT FOR
THE YEAR 2011-12

EXHIBIT P2 COPY OF ORDER ISSUED BY THE 1ST RESPONDENT FOR
THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10337/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32072030706/2011-12

DATED 18.12.2017 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 23.04.2018 ALONG WITH THE ENCLOSURES
FILED BY THE PETITIONER BEFORE THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.32072030706/2011-12 DATED
04.12.2018 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10343/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE 32110218325/2011-12
DATED 19/01/2019 ISSUED BY ASSISTANT

COMMISSIONER 2, SPECIAL CIRCLE 1, STATE GOODS AND SERVICE TAX DEPARTMENT,
KOZHIKODE.

EXHIBIT P₂ THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT EXHIBIT P₃ THE TRUE
COPY OF ASSESSMENT ORDER NO 32110218325/2011-12 DATED 20/03/2019 PASSED BY
ASSISTANT COMMISSIONER 2,M SPECIAL CIRCLE 1, STATE GOODS AND SERVICE TAX
DEPARTMENT, KOZHIKODE EXHIBIT P₄ TRUE COPY OF THE INTERIM ORDER IN
WP9C)NO.8779/2019 DATED 22/03/2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10404/2019

PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE NOTICE FOR THE ASSESSMENT YEAR
2011-12 DATED 22.11.2018

EXHIBIT P₂ TRUE COPY OF THE REPLY FILED FOR THE ASSESSMENT
YEAR 2011-12

EXHIBIT P₃ TRUE COPY OF THE ASSESSMENT ORDER DATED
23.03.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10420/2019

PETITIONER'S EXHIBITS:

EXHIBIT P₁ COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P₂ COPY OF NOTICE DATED 24.01.2019 ISSUED BY THE
1ST RESPONDENT.

EXHIBIT P3 COPY OF REPLY DATED 14.02.2019 ISSUED BY THE
1ST RESPONDENT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10510/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DATED 14.2.2019 IN
WP(C).NO.4416/2019.

EXHIBIT P2 PHOTOCOPY OF NOTICE DATED 21.3.2019

U/S.25(1)R/W SEC.42(3) FOR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10546/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32070260384/2011-12
DATED 15.2.2019

EXHIBIT P2 TRUE COPY OF THE NOTICE NO.32070260384/2011-12
DATED 25.2.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10718/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DT.14.02.2019 IN

EXHIBIT P2 PHOTOCOPY OF NOTICE DT 18.03.2019 U/S. 25(1)
FOR 2011.12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10722/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DT. 14.02.2019 IN
WP(C) NO. 4416/2019.

EXHIBIT P2 PHOTOCOPY OF NOTICE DT. 19.03.2019 U/s. 25 FOR
2011.12

EXHIBIT P3 INTERIM REPLY DT. 26.03.2019 TO EXT. P-2

EXHIBIT P4 PHOTOCOPY OF ORDER DATED 28.03.2019

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10751/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO.32110830404/2011-12

DATED 04/02/2019 ISSUED BY STATE TAX OFFICER, 3RD CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE EXHIBIT P2 THE TRUE COPY OF NOTICE NO NIL DATED 19/12/2018 ISSUED BY STATE TAX OFFICER, 3RD CIRCLE STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE EXHIBIT P3 THE TRUE COPY OF NOTICE NO.32110830404/2011-12 DATED 07/01/2019 ISSUED BY STATE TAX OFFICER, 3RD CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE EXHIBIT P4 THE TRUE COPY OF ASSESSMENT ORDER NO.32110830404/2011-12 DATED 25/03/2019 PASSED BY STATE

TAX OFFICER, 3RD CIRCLE STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE
EXHIBIT P5 THE TRUE COPY OF JUDGMENT IN MALABAR GOLD PRIVATE LIMITED V.
COMMERCIAL TAX OFFICER, KOZHIKODE AND OTHERS (2013) 63 VST 497 (KER), PASSED BY
THIS HON'BLE COURT EXHIBIT P6 THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT,
2018.

EXHIBIT P7 THE TRUE COPY OF THE INTERIM ORDER IN WP(C) NO.8779/2019 DATED
22/03/2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.10820/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32072059495/2011-12
DATED 3.5.2018.

EXHIBIT P2 TRUE COPY OF THE ORDER NO.32072059495/2011-12
DATED 14.3.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11046/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 17.12.2018 ISSUED
BY THE 2ND RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 21.01.2019 ISSUED
BY THE 2ND RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER

NO.32072013707/2011-12 DATED 06.02.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE ORDER DATED 02.04.2019 IN W.P. (C).NO.10208/2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11067/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED BY THE PETITIONER

FOR THE YEAR 2011-12 DATED 11.06.2012.

EXHIBIT P2 COPY OF NOTICE DATED 26.02.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P3 COPY OF ASSESSMENT ORDER DATED 25.03.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11206/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF NOTICE DATED 22.01.2019 ISSUED BY THE
1ST RESPONDENT

EXHIBIT P3 COPY OF LETTER DATED 23.02.2019 ADDRESSED TO
THE 1ST RESPONDENT

EXHIBIT P4 COPY OF LETTER DATED 25.02.2019 OF THE 1ST
RESPONDENT

EXHIBIT P5 COPY OF LETTER DATED 26.03.2019 ADDRESSED TO
THE 1ST RESPONDENT

EXHIBIT P6 COPY OF RELEVANT PAGE OF THE LOCAL DELIVERY
BOOK (26.03.2019)

EXHIBIT P7 COPY OF ORDER DATED 25.03.2019 ISSUED BY THE
1ST RESPONDENT

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11340/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM DATED 14.02.2019 IN

EXHIBIT P2 PHOTOCOPY OF NOTICE DT.22.03.2019 U/S. 25(1)
R/W SEC.42(3) FOR 2011.12

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11341/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DATED 14.2.2019 IN

EXHIBIT P2 PHOTOCOPY OF NOTICE DATED 20.3.2019 U/S. 25A
R/W SEC. 25 (1) FOR 2010.11

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11346/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DT.14.02.2019 IN

EXHIBIT P2 PHOTOCOPY OF NOTICE DT.20.03.2019 U/S.25A R/W
SEC.25(1)FOR 2010.11

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11391/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE PROCEEDINGS OF ASSESSMENT

PASSED U/S. 25(1) OF THE KVAT ACT DATED 21.1.2018.

EXHIBIT P2 A TRUE COPY OF THE RECONCILIATION STATEMENT SO FILED, DATED
12.2.2019.

EXHIBIT P3 A TRUE COPY OF THE PROCEEDINGS OF ASSESSMENT PASSED U/S. 25(1) OF
THE KVAT ACT DATED 21.3.2019.

EXHIBIT P4 A TRUE COPY OF THE JUDGMENT IN STATE OF PUNJAB & OTHERS VS.
BHATINDA DISTRICT CO OP.MILK P UNION LTD REPORTED IN (2007) 10 VST 180 SC.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11433/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE-ASSESSMENT NOTICE DATED
24.11.2018 FOR THE YEAR 2011-12.

EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER DATED
19.03.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S TO JUDGE
APPENDIX OF W.P(C).NO.11466/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR
2011-12.

EXHIBIT P2 COPY OF ORDER DATED 23/03/2019 ISSUED BY THE

1ST RESPONDENT UNDER SEC.25(1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11586/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF NOTICE ISSUED BY THE 1ST RESPONDENT FOR
THE YEAR 2011-12.

EXHIBIT P2 COPY OF ORDER ISSUED BY THE 1ST RESPONDENT FOR
2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11648/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE NO.32072026904/2011-12
DATED 14/09/2018

EXHIBIT P2 TRUE COPY OF REPLY DATED 27.02.2019 FILED BY
THE PETITIONER.

EXHIBIT P3 TRUE COPY OF REPLY DATED 05.03.2019 FILED BY
THE PETITIONER.

EXHIBIT P4 TRUE COPY OF ASSESSMENT ORDER

NO.32072026904/2011-12 DATED 06.03.2019 EXHIBIT P5 TRUE COPY OF RELEVANT PAGES
OF THE FINANCE ACT 2018.

EXHIBIT P6 TRUE COPY OF INTERIM ORDER IN WP(C)NO.36953/2018(T) OF THIS HON'BLE
COURT DATED 04.02.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11653/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32071871395/2011-12
DATED 26.02.2019.

EXHIBIT P2 TRUE COPY OF THE ORDER NO.32071871395/2011-12
DATED 26.03.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11776/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF ORDER DATED 15/03/2019 ISSUED BY THE
1ST RESPONDENT UNDER SEC.25(1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11932/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF ORDER DATED 24/03/2019 ISSUED BY THE
1ST RESPONDENT UNDER SEC. 25(1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.11973/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF ORDER DATED 31/01/2019 ISSUED BY THE
1ST RESPONDENT UNDER SEC. 25(1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12022/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32080925845/2011-12
DATED 22.02.2019.

EXHIBIT P2 TRUE COPY OF INTERIM REPLY DATED 22.03.2019
SUBMITTED BY THE PETITIONER.

EXHIBIT P3 TRUE COPY OF APPLICATION DATED 22.03.2019
SUBMITTED BY THE PETITIONER.

EXHIBIT P4 TRUE COPY OF ORDER NO.32080925845/2011-12 DATED
25.03.2019 OF 2ND RESPONDENT.

EXHIBIT P5 TRUE COPY OF RELEVANT PAGES OF THE FINANCE ACT
2018.

EXHIBIT P6 TRUE COPY OF INTERIM ORDER IN
WP(C)NO.36953/2018(T) OF THIS HON'BLE COURT
DATED 04/02/19.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12049/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE SHOW CAUSE NOTICE DATED

6.12.2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 28.12.2018 FILED BY THE PETITIONER BEFORE THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER FOR 2011-12 NO.32072002165/2011-12 DATED 13.12.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE ORDER DATED 2.4.2019 IN WP(C) 10208/2019 (A) OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12056/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF NOTICE ISSUED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12.

EXHIBIT P2 COPY OF ORDER ISSUED BY THE 1ST RESPONDENT FOR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12104/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ANNUAL RETURN FILED BY THE

PETITIONER FOR THE YEAR 2011-2012, DT.NIL.

EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER PASSED BY THE 1ST RESPONDENT, DATED 18.03.2019.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12182/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF ORDER DATED 22/02/2019 ISSUED BY THE
1ST RESPONDENT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12260/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-

EXHIBIT P2 COPY OF ORDER DATED 25.03.2019 ISSUED BY THE
1ST RESPONDENT UNDER SEC.25(1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12398/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DATED 29.3.2019 IN

EXHIBIT P2 PHOTOCOPY OF NOTICE DATED 21.3.2019 U/S 25A FOR
2010.11

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF W.P(C).NO.12500/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO.32110993315/2011-12

DATED 19.02.2019 ISSUED BY THE ASSISTANT COMMISSIONER, SPECIAL CIRCLE-II, STATE
GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P2 THE TRUE COPY OF ASSESSMENT ORDER NO.32110993315/2011-12 DATED
23.03.2019 PASSED BY THE ASSISTANT COMMISSIONER, SPECIAL CIRCLE- II, STATE GOODS
AND SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P3 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

EXHIBIT P4 THE TRUE COPY OF THE INTERIM ORDER IN WP(C)NO.5779/2019 DATED
22.03.2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS: NIL.

//TRUE COPY//

P.S. TO JUDGE
APPENDIX OF WP(C).NO.12630/2019

PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 15/03/2019 U/S. 25(1)

OF THE ACT, ISSUED BY THE 4TH RESPONDENT TO THE PETITIONER.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C)
12808/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 PHOTOCOPY OF INTERIM ORDER DT. 29/03/2019 IN WP(C) NO.9700/2019.

EXHIBIT P2 PHOTOCOPY OF NOTICE DT. 07/03/2019 U/S. 25(1) FOR 2011-12.

EXHIBIT P3 PHOTOCOPY OF THE ORDER OF ASSESSMENT DATED 26/03/2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.13149/2019 PETITIONER'S/S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE FOR THE ASSESSMENT YEAR 2011-12 DATED 15/1/2018 EXHIBIT P1 A TRUE COPY OF THE REVISED NOTICE DATED 08/03/2019 EXHIBIT P2 TRUE COPY OF THE REPLY FILED FOR THE ASSESSMENT YEAR 2011-12 EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER DATED 5.3.2019 RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.13444/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2010-2011.

EXHIBIT P2 COPY OF ORDER DATED 14/12/2016 ISSUED BY THE 1ST RESPONDENT UNDER SEC.25(1) FOR THE YEAR 2010-11.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.13887/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO.32080710205/2011-12 DATED 21.02.2019.

EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER NO.32080710205/2011-12 DATED 14.3.2019.

EXHIBIT P3 TRUE COPY OF THE DEMAND NOTICE NO.A7-1295/2019 DATED 4.5.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.13957/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ANNUAL RETURN FILED FOR THE YEAR 2011-12.

EXHIBIT P2 COPY OF ORDER DATED 27.3.2019 ISSUED BY THE 1ST RESPONDENT UNDER SEC. 25 (1) FOR THE YEAR 2011-12.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.14071/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO.32011356835/2011-12 DATED 28/01/2019 ISSUED BY THE ASSISTANT COMMISSIONER, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM.

EXHIBIT P2 THE TRUE COPY OF ASSESSMENT ORDER NO.32011356835/2011-12 DATED 29/03/2019 PASSED BY THE ASSISTANT COMMISSIONER, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM EXHIBIT P3 THE TRUE COPY OF THE RELEVANT PAGE OF FINANCE ACT EXHIBIT P4 THE TRUE COPY OF THE INTERIM ORDER IN WP(C)8779/2019 DATED 22/03/2019 OF THIS HON'BLE COURT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.14570/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE ASSESSMENT NOTICE NO.320150858488/2011-12 DATED 05.03.2018 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE REVISED PRE ASSESSMENT NOTICE NO.320150858488/2011-12 DATED 12.04.2018 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.320150858488/2011-12 DATED 17.05.2018 ISSUED BY THE 1ST RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.14833/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 22/01/2019 ISSUED BY THE 2ND RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE ORDER DATED 22/03/2019 PASSED BY THE 2ND RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ORDER DATED 22/03/2019 PASSED BY THE 2ND RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.15037/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER NO.32070388094/2010-11 DATED 07.06.2013 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE ORDER DATED 20.09.2017 IN KVATA 1961/2013 ISSUED BY THE DEPUTY

COMMISSIONER(APPEALS), ERNAKULAM.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.32070388094/2010-11 DATED 14.3.2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE APPEAL NO.KVATA 1613/2018 FILED BEFORE THE DEPUTY COMMISSIONER(APPEALS)ERNAKULAM ON 09.05.2018.

EXHIBIT P5 TRUE COPY OF THE SHOW CAUSE NOTICE NO.320/70388094/2010-11 DATED 23.4.2018 SERVED ON THE PETITIONER ON 28.1.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P6 TRUE COPY OF THE REPLY DATED 19.2.2019 FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P7 TRUE COPY OF THE ASSESSMENT ORDER NO.

32070388094/2010-11 DATED 13.3.2019 SERVED ON THE PETITIONER ON 3.4.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.15633/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF THE ASSESSMENT ORDER OF THE YEAR 2011-2012 DATED 12.3.2019 ISSUED BY THE FIRST RESPONDENT TO THE PETITIONER.

EXHIBIT P2 THE TRUE COPY OF THE RECTIFICATION APPLICATION UNDER SECTION 66 OF THE KVAT ACT FILED BY THE PETITIONER BEFORE THE FIRST RESPONDENT AGAINST THE P1 ASSESSMENT ORDER FOR THE YEAR 2011-2012. EXHIBIT P3 THE TRUE COPY OF THE RECTIFICATION ORDER NO.32070316195/2011-2012 DATED 7.5.2019 ISSUED BY THE FIRST RESPONDENT TOT HE PETITIONER.

EXHIBIT P4 THE TRUE COPY OF THE SAMPLE ST-3 RETURNS FILED UNDER SECTION 70 OF THE FINANCE ACT.

EXHIBIT P5 THE TRUE COPY OF THE APPELLATE ORDER FOR THE YEAR 2009-2010 ISSUED BY THE DEPUTY COMMISSIONER (APPEALS) TO THE PETITIONER DATED 22.1.2014. EXHIBIT P6 THE TRUE COPY OF ASSESSMENT ORDER FOR THE YEAR 2010-2011 DATED 28.5.2016 ISSUED BY THE ASSISTANT COMMISSIONER (ASSESSMENT) TO THE PETITIONER. RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.15957/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 26.11.2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER NO.32269170415/2011-12 DATED 28.01.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE RECOVERY NOTICE B2 RRC/05/19-20 DATED 6.5.2019 IN MALAYALAM ALONG WITH ENGLISH TRANSLATION ISSUED BY THE 3RD RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16001/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE NO. 32072051935/2011-12 DATED 12.2.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 18.03.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.

32072051935/2011-12 DATED 19.03.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16018/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF HE ANNUAL RETURN FOR THE YEAR 2011-12 FILED BEFORE THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE NOTICE NO.32011352212/11-12 DATED 5.1.2018 ISSUED BY THE 1ST RESPONDENT EXHIBIT P3 TRUE COPY OF THE REPLY DATED 29.12.2018 SUBMITTED BEFORE THE 1ST RESPONDENT EXHIBIT P4 TRUE COPY OF THE ASSESSMENT ORDER NO.32011352212/11-12 DATED 25.1.2019 ISSUED BY THE 1ST RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16094/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE SHOW-CAUSE NOTICE DATED 21.12.2018 UNDER SECTION 25(1) OF THE KVAT ACT, 2003.

EXHIBIT P2 A TRUE COPY OF THE ASSESSMENT ORDER DATED 15.3.2019 FOR THE YEAR 2011-12 UNDER SECTION 25(1) OF THE KVAT ACT, 2003.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16162/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE SHOW-CAUSE NOTICE DATED 20.12.2018 UNDER SECTION 25(1) OF THE KVAT ACT, EXHIBIT P2 A TRUE COPY OF THE ASSESSMENT ORDER DATED 26.2.2019 FOR THE YEAR 2011-12 UNDER

SECTION 25)1) OF THE KVAT ACT, 2003 RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF W.P(C).NO.16191/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF NOTICE 32110222904/2011-12 DATED 11.03.2019 ISSUED BY ASSISTANT COMMISSIONER, SPECIAL CIRCLE 1, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P2 TRUE COPY OF ORDER NO.32110222904/2011-12 DATED 28.05.2019 ISSUED BY ASSISTANT COMMISSIONER, SPECIAL CIRCLE 1, STATE GOODS AND SERVICE TAX DEPARTMENT, KOZHIKODE.

EXHIBIT P3 TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

EXHIBIT P4 TRUE COPY OF THE INTERIM ORDER IN WP(C) NO.

8779/2019 DATED 22.03.2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16214/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF THE NOTICE NO.32011352223/2011-12 DATED 08/10/2018 ISSUED BY THE ASSISTANT COMMISSIONER OF STATE TAX, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM.

EXHIBIT P2 THE TRUE COPY OF THE ASSESSMENT ORDER NO.32011352223/2011-12 DATED 30/03/2019 PASSED BY THE ASSISTANT COMMISSIONER OF STATE TAX, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM.

EXHIBIT P3 THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.
EXHIBIT P4 THE TRUE COPY OF THE INTERIM ORDER IN WP(C)NO.

8779/2019 DATED 22/03/2019 OF THIS HONOURABLE COURT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16277/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER DATED 07.05.2019 FOR THE ASSESSMENT YEAR 2011-12.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16778/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER PASSED UNDER S.25(1) BY THE 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 3.4.2018
RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16896/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 7.2.2018 ISSUED BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE LETTER DATED 13.3.2018 ENLARGING THE TIME FILED BEFORE 1ST RESPONDENT EXHIBIT P3 TRUE COPY OF THE NOTICE DATED 20.3.2018 ISSUED BY THE 1ST RESPONDENT EXHIBIT P4 TRUE COPY OF THE REQUEST LETTER DATED 31.3.2018 SUBMITTED BEFORE THE 1ST RESPONDENT EXHIBIT P5 TRUE COPY OF THE ASSESSMENT ORDER NO 32151408855 DATED 28.4.2018 ISSUED BY THE 1ST RESPONDENT EXHIBIT P6 TRUE COPY OF THE JUDGMENT DATED 11.1.2019 IN WPC 23195/2018 OF THIS HON'BLE COURT
RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.16907/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ANNUAL RETURN FOR THE YEAR 2011-12 FILED BY THE PETITIONER BEFORE THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE NOTICE NO.32072086574/11-12 DATED 7/2/2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE REPLY DATED 6/4/2018 SUBMITTED BEFORE THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE REVISED NOTICE NO.32072086574/2011-12 DATED 15/12/2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P5 TRUE COPY OF THE REPLY DATED 29/12/2018 SUBMITTED BEFORE THE 1ST RESPONDENT.

EXHIBIT P6 TRUE COPY OF THE ASSESSMENT ORDER NO.32072086574/2011-12 DATED 25/2/2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P7 TRUE COPY OF THE ORDER DATED 9/4/2019 IN W.P.(C) NO.11237/2019 (D) OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.17041/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO. 32011300506/2011-12 DATED 14/02/2019 ISSUED BY THE ASSISTANT COMMISSIONER OF STATE TAX, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT,

THIRUVANANTHAPURAM EXHIBIT P2 THE TRUE COPY OF ASSESSMENT ORDER NO 32011300506/2011-12 DATED 28/03/2019 PASSED BY THE ASSISTANT COMMISSIONER OF STATE TAX, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM EXHIBIT P3 THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018 EXHIBIT P4 THE TRUE COPY OF THE INTERIM ORDER IN WP(C) NO.8779/2019 DATED 22/03/2019 OF THIS HON'BLE COURT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.17060/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE ISSUED UNDER SEC. 25(1) BY THE 1ST RESPONDENT DATED 28-2-2019 EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER PASSED BY THE 1ST RESPONDENT, DATED 16-05-2019 RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.17629/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE NOTICE ISSUED FOR THE YEAR 2011- 12 DATED 4.2.2019 EXHIBIT P2 A TRUE COPY OF THE REPLY DATED 15.3.2019 ALONG WITH ENGLISH TRANSLATION.

EXHIBIT P3 A TRUE COPY OF THE ASSESSMENT ORDER PASSED FOR THE YEAR 2011-12 DATED 23.3.2019 ALONG WITH ENGLISH TRANSLATION.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.17630/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE ASSESSMENT NOTICE NO.32071312989/2011-12 DATED 22.02.2019 ISSUED UNDER SECTION 25(1) READ WITH SECTION 25A OF THE KVAT ACT BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE REPLY FILED BY THE PETITIONER DATED 29.03.2019 EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.32071312989/2011-12/KVAT DATED 17.04.2019 ISSUED BY THE 1ST RESPONDENT EXHIBIT P4 TRUE COPY OF THE PENALTY ORDER NO.32071312989/2011- 12/KVAT DATED 17.04.2019 ISSUED BY THE 1ST RESPONDENT UNDER SECTION 25(3) READ WITH SECTION 67(1) OF THE KVAT ACT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.17655/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE ASSESSMENT NOTICE NO 32010616833/2011-12 DATED 1.2.2019 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER NO 32010616833/2011-12 DATED 28.3.2019 ISSUED BY

THE 1ST RESPONDENT EXHIBIT P₃ TRUE COPY OF THE REVENUE RECOVERY NOTICE NO A3- 1626/2019 SL. NO 5230 DATED 11.6.2019 ISSUED BY THE 4TH RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.18768/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ A TRUE COPY OF THE NOTICE ISSUED FOR THE YEAR 2011- 12 DATED 7.3.2019 EXHIBIT P₂ A TRUE COPY OF THE ASSESSMENT ORDER PASSED FOR THE YEAR 2011-12 DATED 28.3.2019 RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.18800/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE ANNUAL RETURN FOR 2011-12 FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P₂ TRUE COPY OF THE NOTICE DATED 20.02.2019 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P₃ TRUE COPY OF THE PETITION DATED 21.03.2019 FILED BEFORE THE 1ST RESPONDENT IN MALAYALAM ALONG WITH ENGLISH TRANSLATION.

EXHIBIT P₄ TRUE COPY OF THE ASSESSMENT ORDER NO.32150628235/2011-12 DATED 30.03.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.19777/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE NOTICE DATED 14.03.2019.

EXHIBIT P₂ TRUE COPY OF REPLY DATED 17.05.2019.

EXHIBIT P₃ TRUE COPY OF ASSESSMENT ORDER DATED 21.05.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.19794/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ COPY OF THE COMPOUNDING ORDER DATED 29.06.2018 ISSUED BY THE INTELLIGENCE OFFICER, KOZHIKODE FOR THE YEAR 2011-12.

EXHIBIT P₂ COPY OF NOTICE DATED 07.11.2018 ISSUED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12.

EXHIBIT P₃ COPY OF ORDER DATED 31.12.2018 ISSUED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12.

EXHIBIT P4 COPY OF THE REVENUE RECOVERY NOTICE ISSUED BY THE 2ND RESPONDENT DATED 29.03.2019 AND ITS ENGLISH TRANSLATION.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.20151/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE REPLY DATED 26-3-2019 SUBMITTED BY THE PETITIONER TO THE FIRST RESPONDENT EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER DATED 30-3-2019 AND DEMAND NOTICE DATED 30-3-2019 ISSUED BY THE FIRST RESPONDENT TO THE PETITIONER EXHIBIT P3 TRUE COPY OF THE REVENUE RECOVERY NOTICE DATED 18- 6-2019 ISSUED BY THE 4TH RESPONDENT TO THE PETITIONER RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.20208/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE PRE ASSESSMENT NOTICE NO.

32011388155/2011-12 DATED 29.01.2018 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE REVISED PRE ASSESSMENT NOTICE NO.

32011388155/2011-12 DATED 16.04.2018 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ASSESSMENT ORDER NO.

32011388155/2011-12 DATED 16.04.2018 ISSUED UNDER SECTION 25(1) OF THE KVAT ACT BY THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE REVENUE RECOVERY NOTICE NO.

2019/9858/01 DATED 06.07.2019 ISSUED BY THE 4TH RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.20515/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE NOTICE ISSUED FOR THE YEAR 2011- 12 DATED 12.12.2018.

EXHIBIT P2 A TRUE COPY OF THE ASSESSMENT ORDER PASSED FOR THE YEAR 2011-12 DATED 28.1.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.21244/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF THE PRE-ASSESSMENT NOTICE ISSUED FOR THE YEAR 2011-12 DATED 06.02.2019.

EXHIBIT P2 A TRUE COPY OF THE ASSESSMENT ORDER PASSED FOR THE YEAR 2011-12 DATED 20.03.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.21452/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO.32010671676/2011-12 DATED 22.2.2019 ISSUED BY THE STATE TAX OFFICER,FIRST CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM.

EXHIBIT P2 THE TRUE COPY OF ASSESSMENT ORDER NO.32010671676/2011-12 DATED 28.3.2019 PASSED BY THE STATE TAX OFFICER, FIRST CIRCLE, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM.

EXHIBIT P3 THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.

EXHIBIT P4 THE TRUE COPY OF THE INTERIM ORDER IN WPC.NO.8779/2019 DATED 22.3.2019 OF THIS HON'BLE COURT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.21453/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 8.3.2019 ISSUED BY THE 1ST RESPONDENT EXHIBIT P2 TRUE COPY OF THE ASSESSMENT ORDER NO 32071373515/2011-12 DATED 30.3.2019 ISSUED BY THE 1ST RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.21543/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE NOTICE DATED 16.03.2019 ISSUED BY THE 4TH RESPONDENT TO THE PETITIONER.

EXHIBIT P2 TRUE COPY OF THE REPLY DATED 08.05.2019 SUBMITTED BY THE PETITIONER TO THE 4TH RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE ORDER WITH NO.32110717735/11-12 DATED 09.05.2019 PASSED BY THE 4TH RESPONDENT FOR THE YEAR 2011-12.

EXHIBIT P4 TRUE COPY OF DEMAND NOTICE DATED 09.05.2019 ISSUED BY THE 4TH RESPONDENT TO THE PETITIONER.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.22104/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER PASSED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 24.3.2018.

EXHIBIT P2 TRUE COPY OF THE DEMAND NOTICE IN FORM NO.12 ISSUED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 24.3.2018.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.23309/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER PASSED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 29.03.2019 EXHIBIT P2 TRUE COPY OF THE DEMAND NOTICE IN FORM NO.12 ISSUED BY 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 29.03.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.23313/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER PASSED BY THE 1ST RESPONDENT UNDER THE KVAT ACT FOR THE YEAR 2010-11 DATED 29.03.2019.

EXHIBIT P2 TRUE COPY OF THE DEMAND NOTICE IN FORM NO.12 ISSUED BY 1ST RESPONDENT FOR THE YEAR 2010-11 DATED 29.03.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.23616/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 THE TRUE COPY OF NOTICE NO. 32011348375/2011-12 DATED 7/12/2018 ISSUED BY THE ASSISTANT COMMISSIONER OF STATE TAX, WORKS CONTRACT, STATE GOODS AND SERVICE TAX DEPARTMENT, THIRUVANANTHAPURAM EXHIBIT P2 THE TRUE COPY OF ASSESSMENT ORDER NO.

32011348375/2011-12 DATED 29/3/2019 PASSED BY THE ASSISTANT COMMISSIONER OF STATE TAX WORKS CONTRACT STATE GOODS AND SERVICE TAX DEPARTMENT THIRUVANANTHAPURAM.

EXHIBIT P₃ THE TRUE COPY OF RELEVANT PAGE OF FINANCE ACT 2018.
EXHIBIT P₄ THE TRUE COPY OF THE INTERIM ORDER IN WPC NO.

8779 /2019 DATED 22/3/2019 OF THIS HONBLE COURT. RESPONDENTS
EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF
WP(C).NO.23859/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE NOTICE DATED 28.2.2019 ISSUED BY THE 1ST
RESPONDENT EXHIBIT P₂ TRUE COPY OF THE REPLY DATED 25.3.2019 FILED
BEFORE THE 1ST RESPONDENT EXHIBIT P₃ TRUE COPY OF THE ASSESSMENT
ORDER NO.32070360655/2011-12 DATED 1.8.2019 ISSUED BY THE 1ST
RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE
APPENDIX OF WP(C).NO.24395/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE SHOW CAUSE NOTICE DATED 29.3.2019 U/S
25(1) OF THE KVAT ACT ISSUED BY THE 1ST RESPONDENT EXHIBIT P₂ TRUE
COPY OF THE REPLY DATED 18.4.2019 FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P₃ TRUE COPY OF THE ASSESSMENT ORDER
NO.32071383808/2011-12 DATED 25.6.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF
WP(C).NO.24727/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ A TRUE COPY OF THE PRE-ASSESSMENT NOTICE ISSUED FOR
2011-12 DATED 21.02.2019.

EXHIBIT P₂ A TRUE COPY OF THE PROCEEDINGS OF ASSESSMENT PASSED
FOR 2011-12 DATED 30.03.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF
WP(C).NO.27742/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE PRE ASSESSMENT NOTICE
NO.32030939362/2011-12 DATED 11.03.2019 ISSUED UNDER SECTION 25(1) OF
THE KVAT ACT BY THE 1ST RESPONDENT EXHIBIT P₂ TRUE COPY OF THE
ASSESSMENT ORDER NO.32030939362/2011-12 DATED 30.03.2019 ISSUED BY
THE 1ST RESPONDENT EXHIBIT P₃ TRUE COPY OF THE REVENUE RECOVERY
NOTICE NO.2019/6062/03 DATED 11.09.2019 ISSUED BY THE 4TH
RESPONDENT RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE
APPENDIX OF WP(C).NO.27872/2019 PETITIONER'S EXHIBITS:

EXHIBIT P₁ TRUE COPY OF THE ANNUAL RETURN FOR THE YEAR 2011-12
FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE LETTER DATED 15.12.2014 INTIMATING THE CHANGE OF ADDRESS FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE EMAIL COMMUNICATION DATED 27.4.2017 FOR AMENDING THE ADDRESS FILED BEFORE THE 1ST RESPONDENT.

EXHIBIT P4 TRUE COPY OF THE PROHIBITORY ORDER DATED 25.9.2019 AND THE LETTER ISSUED BY THE 3RD RESPONDENT TO THE 4TH RESPONDENT.

EXHIBIT P5 TRUE COPY OF THE CERTIFIED COPY OF THE ASSESSMENT ORDER NO. 32071147378/2011-12 DATED 21.3.2019 ISSUED BY THE 1ST RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.28775/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 COPY OF ASSESSMENT ORDER ISSUED BY THE 1ST RESPONDENT FOR THE YEAR 2011-12 DATED 11.03.2019. EXHIBIT P2 COPY OF NOTICE IN FORM NO.1 ISSUED BY THE 2ND RESPONDENT DATED 06.09.2019
RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.A TO JUDGE APPENDIX OF WP(C).NO.30131/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 A TRUE COPY OF ASSESSMENT ORDER UNDER SECTION 25(1) AND 22(7) OF KERALA VALUE ADDED TAX ACT, 2003, DATED 20.03.2019 ISSUED BY THE 2ND RESPONDENT TO THE PETITIONERS IN RESPECT OF THE ASSESSMENT YEAR 2011-12 EXHIBIT P2 A TRUE COPY OF DEMAND NOTICE UNDER SECTION 34 AND 7 OF REVENUE RECOVERY ACT ISSUED BY THE 3RD RESPONDENT ON BEHALF OF 2ND RESPONDENT DATED 19.09.2019
EXHIBIT P2 A TRUE COPY OF DEMAND NOTICE UNDER SECTION 34 OF 7 OF REVENUE RECOVERY ACT ISSUED BY THE 3RD RESPONDENT ON BEHALF OF 2ND RESPONDENT DATED 17.09.2019
RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.30256/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ASSESSMENT ORDER NO.32040518185/2011-12 DATED 31.10.2018 ISSUED BY THE 1ST RESPONDENT.

EXHIBIT P2 TRUE COPY OF THE RECOVERY NOTICE NO.A7-230/2018- 19/275 (RRC/59/18-19) DATED 19.5.2019 ISSUED BY THE 3RD RESPONDENT.

EXHIBIT P3 TRUE COPY OF THE LETTER DATED 15.10.2019 ADDRESSED TO THE PETITIONER BY THE 4TH RESPONDENT.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.31560/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ORDER NO.32091427361/2011-12 DATED 29.03.2019.

EXHIBIT P2 TRUE COPY OF THE FORM NO.25 CERTIFICATE OF RECOVERY OF SUM OTHER THAN PUBLIC REVENUE DUE ON LAND NO.A1- 395-(RRC 9/2019-20) AND DEMAND NOTICE U/S 7 DATED 4.7.2019.

RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE APPENDIX OF WP(C).NO.32439/2019 PETITIONER'S EXHIBITS:

EXHIBIT P1 TRUE COPY OF THE ORDER NO.32151092995/2011-12 DATED 28-07-2019.

EXHIBIT P2 TRUE COPY OF THE NOTICE DATED 21-02-2019. EXHIBIT P3 TRUE COPY OF THE REPLY FILED BY THE PETITIONER. RESPONDENTS EXHIBITS:NIL //TRUE COPY// P.S TO JUDGE